

AUTHORIZED FOR LOCAL REPRODUCTION
PREVIOUS EDITION IS NOT USABLE

STANDARD FORM 1449 (REV. 2/2012)
Prescribed by GSA - FAR (48 CFR) 53.212

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NO.	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT	42a. RECEIVED BY (<i>Print</i>)
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	42b. RECEIVED AT (<i>Location</i>)
41c. DATE	42c. DATE REC'D (YY/MM/DD)
	42d. TOTAL CONTAINERS

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Form

This procurement is using the procedures of 41 U.S.C. 1901, as implemented by Class Deviation 2026-O0028 - Revolutionary Federal Acquisition Regulation (FAR) Overhaul Part 12, Defense FAR Supplement (DFARS) Part 212 and Revolutionary FAR Overhaul Part 12.201-1, Simplified procedures, for acquisition described at 12.001(c).

Continuation of Blocks from SF 1449

1. Block 8

Offer Due Date/Local Time: 5/11/26 3:00 PM EDT

2. Block 9

Email Offers to James.Kahn@dla.mil & Thomas.Haley@dla.mil

3. Block 17a

› Offeror's assigned Unique Entity Identifier Number: _____

(If you do not have a Unique Entity Identifier number, contact the individual identified in Block 7a of the SF 1449 or see 52.212-1, Instructions to Offerors --Commercial Items (paragraph j) for information on establishing a unique entity identifier.)

› Offeror's assigned Contractor and Government Entity (CAGE) Code: _____

4. Block 17b

Remittance Address: (if different from Contractor/Offeror address in block 17a of the SF 1449.)

5. Blocks 19-22

Item No., Schedule of Supplies/Services, Quantity, Unit:

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Form (CONTINUED)

CLIN #	NSN	Item Nomenclature
0001	8925-01-675-9077	CASHEW NUTS, SHELLED, ROASTED CONVENTIONAL, CASHEWS, HALVES (SPLITS), FLAVORED (EVENLY DISTRIBUTED COATING OF FINE DUSTING OF JALAPENO FLAVOR), INDIVIDUAL SERVING POUCH 19g, A-A-20164E AGRICULTURAL PRACTICE (1), TYPE III, SIZE 2, STYLE C, PACKAGING TYPE 1, PACKAGE SIZE G (UNITIZED GROUP RATIONS ONLY)
0002	8920-01-675-9070	TOASTER PASTRY, CHOCOLATE CHIP, FROSTED (ICING), REGULAR, NOT FORTIFIED, ENRICHED WHEAT FLOUR, CONVENTIONAL, SINGLE SERVING PACKET A-A-20211C, TYPE I, FORTIFICATION B, GRAIN COMP. (1), AGRIC. PRACTICE i, SERVINGS (a), STYLE B, FLAVOR 12, ICING OPTION (c) (FOR UNITIZED GROUP RATIONS ONLY)
0003	8940-01-675-9085	BEEF SNACK, FERMENTED, CHOPPED AND FORMED STICKS, TERIYAKI. (bags of 25) CID A-A-20298C, VARIETY A, FLAVOR B, TYPE IV, STYLE A, AND CLASS 2, FLAVOR B (UNITIZED GROUP RATIONS ONLY)

AUTHORIZED NEGOTIATORS

-The offeror represents that the following person(s) are authorized to negotiate on its behalf with the Government in connection with this request for proposal. Please list names, titles, telephone numbers, and emails for each authorized negotiator.

THE FOLLOWING INFORMATION IS REQUIRED TO BE FURNISHED BY EACH OFFEROR

1. Completed Standard Form 1449 fill-ins
2. Completed all Supplies/Prices "Schedule" sheets (Offered Prices)
3. Completed CAGE Code and Unique Entity Identifier (UEI) Numbers spaces in previous section
4. Completed all the following and any additional Offeror Representations and Certification
 - a. Authorized Negotiators
 - b. Place of Performance

Any questions can be direct to the following

- Contract Specialist: James Kahn (James.Kahn@dla.mil or 445-737-3232)
- Contracting Officer: Thomas Haley (Thomas.Haley@dla.mil or 445-737-7580)

Schedule of Supplies

1. Item Description

Form (CONTINUED)

Line	NSN	Item Description	Est Yearly Qty
0001	8925-01-675-9077	Jalapeno Cashews	11,520
0002	8920-01-675-9070	Toaster Pastry Chocolate Chip	13,440
0003	8940-01-675-9085	Teriyaki Beef Stick	11,520

2. IQC Quantities

For a three-year period, the yearly estimated minimum and maximum quantity as follows:

CLIN 0001

Minimum Contract Quantity: 6,912 EA (20% of the estimated total contract quantity)

Estimated Total Contract Quantity: 34,560 EA

Maximum Contract Quantity: 69,120 (200% of the estimated total contract quantity)

CLIN 0002

Minimum Contract Quantity: 8,064 EA (20% of the estimated total contract quantity)

Estimated Total Contract Quantity: 40,320 EA

Maximum Contract Quantity: 80,640 EA (200% of the estimated total contract quantity)

CLIN 0003

Minimum Contract Quantity: 6,912 EA (20% of the estimated total contract quantity)

Estimated Total Contract Quantity: 34,560 EA

Maximum Contract Quantity: 69,120 (200% of the estimated total contract quantity)

3. Pricing

All prices must be offered on an F.O.B. Destination basis. Prices must include freight to the following destination:

Defense Depot Tracy
W62G2T
W1BG DLA DISTRIBUTION
25600 S. CHRISMAN ROAD
WAREHOUSE NO. 30, SECTION 2 - UGR
TRACY, CA 95376-5000 US

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- Inspection is at Origin (Contractor's Plant) and Acceptance is at Destination (Tracy Depot)
- Required Delivery Dates shall not exceed 90 days after issuance of each delivery order
- The Government reserves the right to require information other than cost or pricing data, as defined at FAR 2.101, or cost and pricing data, as applicable and if required to determine price reasonableness of any offer(s) 0.

-The contracting officer, as a representative of the Government, reserves the right to request any/all other information to assist in the evaluation of the resultant contract award.

Offerors must submit pricing for each line item they intend to submit an offer. Pricing must be submitted for all tiers on an F.O.B Destination basis. Failure to submit pricing on all tiers on any line item may result in nonacceptance of that line item(s) and/or tier(s), which could result in rejection of the entire proposal as technically unacceptable. Different prices may be offered per tier. Each offer should be priced accordingly. Only one price per tier will be accepted. Unit prices must be formatted using no more than two decimal places. (Ex: \$X.XX.) Offerors may submit their pricing below or separately in a similar format:

Item Description	Est Annual Qty	Unit of Issue	Tier 1	Tier 2	Tier 3
Jalapeno Cashew	11,520	EA	\$_____	\$_____	\$_____
Toaster Pastry Chocolate Chip	13,440	EA	\$_____	\$_____	\$_____
Teriyaki Beef Stick	11,520	EA	\$_____	\$_____	\$_____

4. Delivery Requirements

- The shelf life for this item is **36 months**
- The required delivery date (RDD) will be **90 days** after issuance of each delivery order

-The effective term of the contract will contain give (3) consecutive tiered delivery periods. Each tier will be 365 days

in length. The first delivery period will be begin upon date of award, unless specified in resulting contract.

-See FAR clause 52.216-22, Indefinite Quantity and FAR clause 52.216-18, Ordering for delivery periods and ordering.

-See clause 52.216-19 -ORDER LIMITATIONS - for individual delivery order quantities. COMPLETE DELIVERY INSTRUCTIONS WILL BE PROVIDED WITH EACH DELIVERY ORDER.

-PRE-AWARD PLANT SURVEY: To determine the responsibility of prospective contractors, the government reserves the right to conduct physical surveys of the plants which are to be used in the performance of a contract. In the event the government is prevented from conducting such surveys by the offeror or its proposed subcontractor, the offer may be rejected. As a part of the pre-award survey, the offeror may be required to obtain from its intended sources of supply, letters confirming availability of components, materials machinery and tooling.

SPECIAL CAUTION NOTICE The Government reserves the right to cancel this solicitation and to include any/all Amendment(s) incorporated into the solicitation at any time. If this should occur, the Government will not be liable

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for any proposal preparation costs or any other costs that offerors may have incurred related to this solicitation. The offeror should provide their BEST offer at the time of solicitation closing, in the event that the Government makes an award based on the initial offer. The Government reserves the right and intends to evaluate offers and award a contract without opening negotiation discussions. However, the Government reserves the right to conduct negotiation discussions if determined by the Contracting Officer to be in the best interest of the Government to do so. Note of Caution: Offerors are highly encouraged to carefully review the solicitation before developing and submitting any questions, as no additional questions will be accepted after solicitation closing on April 24th, 2026 @ 3:00pm.

DID YOU REMEMBER TO?

(1). Sign and Date the SF1449 document as required? (2). Complete the SF1449 fill-ins? (3). Return one (1) completed copy of the solicitation signed, populated fill-ins, checked boxes, checked spaces, or any other instructions, representations, and certification information requested/required of your company and offer? (4). Completed all Supplies/Prices "Schedule" sheets (offered delivered unit prices)? (5). Complete all Tier Years fill-in schedule with your offered delivered unit prices? (6). Complete and submit your Non-Price (Technical) Proposal as required for submission? (7). Complete and submit your Business (Price) Proposal as required for submission? (8). Complete the CAGE Code and Unique Entity Identifier Number fill-ins on the page identified for your fill-ins? (9). Complete all the following and any additional offeror representations and certifications: (i). Authorized Negotiators with all requested information. (ii). FAR 52.212-3 Offeror Representations and Certifications - Commercial Items. (iii). Place of Performance. (iv). Remittance address (if different from contractor/offeror address). (10). Read FAR 52.212-1 (Instructions to Offerors - Commercial Products and Commercial Services) and FAR 52.212-2 (Evaluations - Commercial Products and Commercial Services) very carefully to assure you prepared your Non-Price (Technical) and Business (Price) Proposals in accordance with the submission instructions and evaluation criteria? (11). Be aware and mark the DAY/DATE/TIME of the solicitation closing? (12). Submit your BEST offer? (13). Check your submitted Delivered Unit Prices for correctness and accuracy? (14). Submit all your Product Demonstration Model (PDM) samples as complete, in the correct number of samples specified and required to be produced and sent to the correct and required offices and addresses required by the DAY/DATE/TIME of the Solicitation closing? (15). Submit all the required PDM's to their proper locations as described and required in the solicitation before the DAY/DATE/TIME of solicitation closing? (16). Identify your authorized negotiators as required? Did you identify which negotiator will serve as your primary point of contact? (18). Submit your Food Defense Plan submission requirement at the DAY/DATE/TIME of solicitation closing? (19). Submit your Integrated Pest Management Plan submission requirement at the DAY/DATE/TIME of solicitation closing? (20). Submit your Small Business/Subcontracting Plan (applicable to large businesses only) submission requirement at the DAY/DATE/TIME of solicitation closing?

CAUTION: The above checklist is for convenience purposes only. The list is not intended to be all inclusive. Offerors are responsible for carefully reviewing the entire solicitation to ensure proper submission of all required information

STATEMENT OF WORK

1. Introduction

DLA Troop Support intends to award a Simplified Indefinite Delivery Contract (SIDC) with the purpose of providing Snack Items to be used in the Unitized Group Ration - Heat & Serve Program and Unitized Group Ration M Programs.

This solicitation is hereby issued utilizing Low Price Technically Acceptable (LPTA) source selection procedures. Offerors must meet all terms, conditions, and requirements of this solicitation. See FAR Provision 52.212-2 Evaluation-Commercial Items for evaluation criteria. DLA Troop Support will utilize LPTA source selection procedures to evaluate all offers. A proposal will be determined Technically Acceptable if it meets all terms and conditions of Government's submission requirements of the solicitation. The required submissions must be received from offerors before the time set for closing. Failure to furnish this information by the time specified may be cause for rejection if not otherwise acceptable under FAR provisions for considering late offers. To receive consideration for award on a given

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line item, an offeror must be rated as technically acceptable regarding the technical factor. Technical acceptability will be rated as either acceptable or unacceptable. The Government may also remove an offer from consideration for award on a given line item if the pricing offered is considered unreasonable.

Alternative commercial items may not be considered for award on this instant acquisition, however, may be utilized for market research on future requirements. The Government intends to make one award per line item.

The Government will award an indefinite delivery contract(s) resulting from this solicitation to the responsible offeror(s) whose offer conforms to the solicitation and will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

1. Technical Evaluation - Product Demonstration Models
2. Price

2. Contracting Authority

- a. A DLA Troop Support Contracting Officer is the ONLY person authorized to approve change to or modify any requirement of the contract. Notwithstanding any provisions contained elsewhere in the contract, said authority remains solely with the DLA Troop Support Contracting Officer.
- b. In the event the vendor effects any change at the direction of any person other than the DLA Troop Support Contracting Officer, the change will be considered to have been made without authority and no adjustments will be made to cover any costs associated with such change.

3. Negotiations

For the subject acquisition, the Government intends to award on initial offers but reserves the right to conduct negotiations if determined by the Contracting Officer to be necessary. Initial responses to negotiations must be in a form of communication customary in the industry for transmitting information to include phone, facsimile transmission, letter, in-person and e-mail.

4. Technical/Quality Data

I. Product Demonstration Model (PDM) Information:

Product Demonstration Model (PDM): The Government requires Product Demonstration Models (PDMs) for each item while the solicitation is open. The PDMs must be received no later than the time set for closing of offers. Offers will be evaluated to determine compliance with all characteristics listed for evaluation in FAR 52.212-2 herein. Failure to furnish this information and PDMs by the time specified in the solicitation may be cause for rejection of the proposal. The offer may be rejected under the late offer clause or may be rejected because additional submissions will be tantamount to a submission of a new offer. A cover letter may accompany the offer to set forth any information you wish to bring to the attention of the Government.

Solicitation Provisions:

Product Demonstration Models (PDMs) are to be submitted at no expense to the Government and must be received prior to the time set for closing of offers. PDMs will become the property of the Government and will not be returned to the offeror. Failure to submit PDMs may result in rejection of an offer.

- a. The PDM is the standard to which all production under any contract resulting from this solicitation must conform. Offerors are cautioned that samples produced in test facilities may not be comparable to the product produced on a production line, which result in rejection of the product. Also, major changes in production methodology or packaging, such as implementation of new technology, may result in production that does not meet the production standard, which would require the submission and evaluation of new PDMs. Should the contractor at any time plan to, or actually produce the product using different raw material or process methodologies from the approved Product Standard, which

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result in a product non-comparable to the Product Standard, the contractor shall arrange for a Replacement PDM approval. In any event, all product produced must meet all requirements of this document including Product Standard comparability.

- b. The Government will evaluate the PDMs for compliance with the item descriptions and product specifications and will also evaluate the sensory attributes of the food product to include appearance, odor, flavor and texture using the recognized 9-point quality rating scale to determine product quality. PDMs must conform to all specification/production description characteristics. Failure of models to conform to the specification may result in rejection of offer. Product offered shall conform to all packaging, labeling, and packing requirements as well as analytical requirements. The government shall not accept product from any resultant contract which does not conform to all requirements.
- c. Vendors shall have one opportunity to correct any deficiencies found during the evaluation of PDMs submitted as part of the initial proposal and have their PDM pass evaluation. Vendors are advised that if they have any unacceptable PDMs after the second evaluation, their proposal will be determined to be technically unacceptable and they will not be considered for award. The Government shall require each PDM to be rated as "Acceptable". Revised or alternate PDMs submitted during negotiations shall be evaluated for the same criteria detailed above.
- d. PDMs shall be submitted as follows:

A total of 30 samples of PDM items shall be submitted as stated below:

- i. A total of 12 PDMs shall be sent to:

DEPARTMENT OF THE ARMY
FCDD-SCC-EMR (Attn Jill Bates)
COMBAT CAPABILITIES DEVELOPMENT COMMAND-SOLDIER CENTER
10 GENERAL GREENE AVENUE
NATICK, MA 01760-5056
Lab # 508-233-3315
jill.m.bates.civ@army.mil

Note: The end or side of the box should have a sticker, or be printed on the box, with the following information:

Product Demonstration Model Sample
Solicitation Number
Product Identity
Lot #
Company Name and Address
Point of Contact Name and Phone Number

Inside the case, along with the samples, should be the required paperwork, fully identifying the product, solicitation number, contract number (if applicable), whether the item is an Initial, Replenishment, or Replacement PDM, USDA certification, any test results available, or any other information to assist in identifying the product and conducting the evaluation.

Offerors may direct proposed subcontractors to submit PDM samples directly to DEVCOM SC on their behalf. In those instances, the offeror will send written notification of subcontractor submissions to DEVCOM SC and such PDMs must be clearly labeled for which offeror they are being submitted. This documentation must also be part of their proposal. PDMs will not be evaluated until written notification from the offeror is received. This consideration does not relieve the offeror of the full responsibility for submitting all PDMs in a timely manner. Late submissions of PDMs may be the basis for rejection of the proposal.

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The Offeror shall provide a complete list of its PDMs submitted, with its technical proposal, to include: item, source of supply name and address, and item lot number. Note: Offerors may submit PDMs to DEVCOM SC for evaluation any time after solicitation issuance. However, PDM Samples and documentation must be submitted by the deadline for receipt of proposals to the Business Opportunities Office (BOO) at DLA TROOP SUPPORT with the aforementioned supplier and lot number information.

- ii. A total of 16 PDMs shall be sent to the cognizant in-plant Government inspector. In this instance, the offeror shall advise the Government inspector after production of the PDMs and shall obtain a signed statement from the inspector confirming possession of the samples and identifying the samples as from the same production lot as those submitted to DEVCOM SC. The offeror shall submit this statement(s) with this balance of PDM samples submitted to DLA Troop Support.
- iii. The remaining 2 PDMs of the same product lot code as those submitted to DEVCOM SC and the USDA government inspector shall be mailed along with your technical proposal to the address indicated on Block 9 at DLA Troop Support (attn. James Kahn) on the first page of the solicitation. Coordinate sample submission with the Contracting Officer prior to submittal to DLA Troop Support- Subsistence.
- iv. PLEASE NOTE: This requirement is waived for any offeror who has submitted and received an acceptable rating on a PDM or FA from DEVCOM SC, in the 12 months prior to the solicitation close date. Please provide documentation from DEVCOM SC of the passing PDM score.
- v. Late submissions of PDMs may be the basis for rejection of the proposal.
- vi. The PDMs required in this part of the solicitation, which are submitted to DEVCOM SC, must have any required analytical results included as part of the offer for this technical evaluation factor. The analyticals are to be self-certified or certified by the USDA (i.e., testing of official USDA samples by a USDA/AMS laboratory) for current suppliers of these items and self-certified by other potential offerors. Failure to submit the required certified analyticals with PDMs may result in the proposal not being considered for award. The offeror should include applicable documentation to establish that the product has been processed to meet commercial sterility requirements. e.g.: including incubation sample results.

e. Every 12 months, the Government Quality Assurance Representative (GQAR) will randomly select 12 replenishment samples for DEVCOM SC and 16 replenishment samples for the government's supply at origin from a lot accepted by the government for all contractual requirements. The contractor will be responsible for shipment to DEVCOM SC. This replenishment may occur earlier if necessary to ensure an adequate supply of PDM samples. The contractor will also use samples from this same lot as the production standard.

- i. Replenishment PDMs are defined as product samples used to reestablish the product standard due to depleting the current PDM stocks or as required by schedule. Replenishment PDMs will be evaluated for appearance, odor, flavor and texture, must be equal to or better than the existing product standard for all characteristics, and must meet the requirements for those characteristics in the appropriate product technical requirements document or specification(s). Upon acceptance the replenishment PDM will become the new product standard.
- ii. If a Replenishment PDM is rejected by DEVCOM SC, the next conforming production lot will be submitted by USDA as a Resolution PDM Replenishment. This follow-up Resolution PDM Replenishment and any subsequent Resolution lots cannot be shipped by the manufacturer without an

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acceptable evaluation result from DEVCOM SC.

- iii. The cut-off date for PDM Replenishments will be 18 months. After 18 months, USDA will submit a PDM sample to DEVCOM SC as a Replacement PDM, following the PDM submittal process. The production lot that is used for the Replacement PDM submittal cannot be shipped by the manufacturer without an acceptable evaluation result from DEVCOM SC.

- f. *If the contractor wishes to establish a new standard, that new standard would be called a Replacement PDM.*

Replacement PDMs are defined as product samples that are non-comparable to the established PDM, e.g. due to different ingredients or process methodologies. Replacement PDMs are submitted by the contractor and follow the same submittal process as the initial PDM. At no time will there be two standards for the product.

- g. Periodic Review samples are required for all Polymeric Tray items. The following are the requirements and distribution of samples: The USDA Inspector shall select eight samples of each item produced during each month of Polymeric Tray production. The eight samples will be selected from four random sampling points in the lot and DEVCOM SC will receive samples from each of those four sampling points. The remaining samples will be distributed to the USDA review locations. These samples shall be designated as Monthly Review Samples. The USDA Inspector will ship them monthly to the following locations at the contractor's expense:

One sample of all items to the USDA, AMS, FV, SCI Division Review Locations (Washington, DC; Oshkosh, WI; South Bend, IN and Winter Haven, FL)

AND

Four samples of all items to:

DEPARTMENT OF THE ARMY
FCDD-SCC-EMR (Attn Jill Bates)
COMBAT CAPABILITIES DEVELOPMENT COMMAND-SOLDIER CENTER
10 GENERAL GREENE AVENUE
NATICK, MA 01760-5056

- h. In the event that an offeror's PDM was found technically acceptable, but not offered the award, the offeror may present the remainder of the PDM lot, to the Government for purchase at the awarded price. The Government retains the option to purchase the remainder of the lot at the order price.

52.212- 2 EVALUATION-COMMERCIAL ITEMS (DEVIATION 2026-O0038) (FEB 2026) - FAR

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and meeting the requirements of the solicitation considered. The following shall be used to evaluate offers:

- DLA Troop Support will use **Low Price Technically Acceptable** procedures to evaluate all offers. The Government will evaluate each offeror's unit prices. Pricing will be evaluated for indefinite quantity to one destination. The indefinite quantities for this acquisition will be multiplied by the offered unit price to estimate the lowest overall aggregate cost to the Government.
- The Government requests PDMs and will evaluate **the PDMs** for compliance with the item descriptions and product specifications and will also evaluate the sensory attributes of the food product to include appearance, odor, flavor, and texture using the recognized 9-point quality rating scale to determine product quality. The PDMs will be evaluated by

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DEVCOM SC and **will be rated “ACCEPTABLE” if it meets the requirement of the item description and its Quality Scale result from DEVCOM SC is equal or above 6.** Approval or acceptance of a PDM shall not constitute a waiver of any specification requirement unless specifically stated by the Contracting Officer. The 12 acceptable **PDMs** will be used as production standards.

- If negotiations are conducted, offerors having unacceptable PDMs (Quality Scale is lower than 6) will be given an opportunity to correct deficient PDMs. The final rating will be based on second submission (if negotiations are conducted) and it must be rated “ACCEPTABLE” otherwise the final proposal will be rejected.

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

II. INSPECTION AND ACCEPTANCE REQUIREMENTS

A. For the purposes of Inspection/Acceptance and Shipment/Delivery, a manufacturer's “lot” shall be considered no greater than a single shift's production.

Note: When product is being delivered to Tracy Depot in California, lot numbers will not be mixed on the same pallet.

B. OPTIONAL CONTRACTOR TESTING is provided by the alternate inspection requirements of DLAD 52.246-9024, Alternative Inspection Requirements for Selected Items.

III. ITEM DESCRIPTION

The below listed item descriptions include the required technical specification (i.e. Performance Contract Requirements (PCRs), Commercial Item Descriptions (CIDs), etc) for this acquisition.

Note: When a CID is listed as the required technical specification, the associated PKG&QAP document - if there is one - is also incorporated into the performance requirements.

NSN: 8925-01-675-9077

Item Description: CASHEW NUTS, SHELLED, ROASTED CONVENTIONAL, CASHEWS, HALVES (SPLITS), FLAVORED (EVENLY DISTRIBUTED COATING OF FINE DUSTING OF JALAPENO FLAVOR), INDIVIDUAL SERVING POUCH 19g, A-A-20164E AGRICULTURAL PRACTICE (1), TYPE III, SIZE 2, STYLE C, PACKAGING TYPE 1, PACKAGE SIZE G (UNITIZED GROUP RATIONS ONLY)

NSN: 8920-01-675-9070

Item Description: TOASTER PASTRY, CHOCOLATE CHIP, FROSTED (ICING), REGULAR, NOT FORTIFIED, ENRICHED WHEAT FLOUR, CONVENTIONAL, SINGLE SERVING PACKET A-A-20211C, TYPE I, FORTIFICATION B, GRAIN COMP. (1), AGRIC. PRACTICE i, SERVINGS (a), STYLE B, FLAVOR 12, ICING OPTION (c) (FOR UNITIZED GROUP RATIONS ONLY)

NSN: 8940-01-675-9085

Item Description: BEEF SNACK, FERMENTED, CHOPPED AND FORMED STICKS, TERIYAKI. (bags of 25)

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CID A-A-20298C, VARIETY A, FLAVOR B, TYPE IV, STYLE A, AND CLASS 2, FLAVOR B (UNITIZED GROUP RATIONS ONLY)

Copies of the required technical specifications (i.e.: Performance Contract Requirements (PCRs), Commercial Item Descriptions (CIDs), etc) may be obtained upon request from:

Defense Logistics Agency
DLA Troop Support
Ms. Shannon Dempsey, Food Technologist and/or Mr. Raphael Kler, Product Specialist
ATTN: FTSC
700 Robbins Avenue, Philadelphia, PA 19111-5092
e-mail: substggroupations@dla.mil

Copies of the stated documents may also be obtained at the DLA Troop Support Subsistence Internet website located at <https://www.dla.mil/TroopSupport/Subsistence/OperationalRations/pcracr/> or <http://www.dla.mil/TroopSupport/Subsistence/OperationalRations/cids/>

IV. TRACEABILITY

In order to facilitate an effective traceability for the Unitized Group Ration Program, the contractor shall ensure that each primary container (unit pack) and intermediate container, if required, has a lot number and Date of Pack (DOP). These package codes shall be permanent and legible.

Use of the Julian Date for the lot number and a time stamp (hour and minute of filling/sealing) is preferred. For example (8028 12:15), 8028 = January 28, 2028 and 12:15 representing the time of filling/sealing. When not required by specification, the contractor's lot identification may be of their own coding, i.e. a closed code, but the contractor shall provide the coding information for the primary containers and the contract data markings upon delivery. Package codes (to include time per case lot number shall be identified on the appropriate accompanying DD Form 250 upon delivery.

Additionally, the contractor shall ensure that traceability records include identifying ALL ingredients and ALL sources for those ingredients. This shall be accomplished for each item, brand and component that is shipped to the Defense Depot (Assembler) for the Unitized Group Ration Programs.
This information shall be made available within 24 hours.

V. PRODUCT SANITARILY APPROVED SOURCE REQUIREMENTS

As required by 48 CFR 246.471 Authorizing Shipment of Supplies, AR 40-657, Veterinary/Medical Food Safety, Quality Assurance and Laboratory Service, DLAR 4155.3, Veterinary Medical and Inspections of Subsistence Supplies and Services, DLAD 52.246-9044, "SANITARY CONDITIONS (APR 2014), and as clarified by the Armed Forces Food Risk Evaluation Committee, 31 JAN 1996, all Operational Ration Food Components will originate from sanitarily approved establishments. Acceptable sanitary approval is constituted by listing in the "Directory of Sanitarily Approved Food Establishments for Armed Forces Procurement," published by the U. S. Army Medical Command Veterinary Services Directorate, or an establishment inspected and approved by the U.S. Department of Agriculture (USDA) or the U.S. Department of Commerce (USDC) and possessing a USDA/USDC establishment number. This requirement applies to all GFM and CFM Operational Ration Food Components and to all Operational Ration types. Requests for inspection and "Directory" listing by U. S. Army Medical Command Veterinary Services Directorate will be routed through DLA Troop Support- FTW Food Safety Office for coordination and action. Situations involving sole sources of supply, proprietary supply sources, and commercial Brand Name items will be evaluated directly by the Chief, DLA Troop Support-FTSC, in coordination with the Chief, Approved Sources Division, US Army Veterinary Services.

SANITARY CONDITIONS

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(a) Food establishments.

(1) All establishments and distributors furnishing subsistence items under DLA Troop Support contracts are subject to sanitation approval and surveillance as deemed appropriate by the Military Medical Service or by other Federal agencies recognized by the Military Medical Service. The Government does not intend to make any award for, nor accept, any subsistence products manufactured, processed, or stored in a facility which fails to maintain acceptable levels of food safety and food defense, is operating under such unsanitary conditions as may lead to product contamination or adulteration constituting a health hazard, or which has not been listed in an appropriate Government directory as a sanitarily approved establishment when required. Accordingly, the supplier agrees that, except as indicated in paragraphs (2) and (3) below, products furnished as a result of this contract will originate only in establishments listed in the MEDCOM Circular 40-1, Worldwide Directory of Sanitarily Approved Food Establishments for Armed Forces Procurement, (Worldwide Directory) (available at: <http://phc.amedd.army.mil/topics/foodwater/ca/Pages/DoDAApprovedFoodSources.aspx>). Compliance with the current edition of DoD Military Standard 3006A, Sanitation Requirements for Food Establishments, is mandatory for listing of establishments in the Worldwide Directory. Suppliers also agree to inform the Contracting Officer immediately upon notification that a facility is no longer sanitarily approved and/or removed from the Worldwide Directory and/or other Federal agency's listing, as indicated in paragraph (2) below. Suppliers also agree to inform the Contracting Officer when sanitary approval is regained and listing is reinstated.

(2) Establishments furnishing the products listed below and appearing in the publications indicated need not be listed in the worldwide directory. Additional guidance on specific listing requirements for products/plants included in or exempt from listing is provided in Appendix A of the Worldwide Directory.

(i) Meat and meat products and poultry and poultry products may be supplied from establishments which are currently listed in the "Meat, Poultry and Egg Inspection Directory," published by the United States Department of Agriculture, Food Safety and Inspection Service (USDA, FSIS), at <https://www.fsis.usda.gov/inspection/establishments/meat-poultry-and-egg-product-inspection-directory>. The item, to be acceptable, shall, on delivery, bear on the product, its wrappers or shipping container, as applicable, the USDA shield and applicable establishment number. USDA listed establishments processing products not subject to the Federal Meat and Poultry Products Inspection Acts must be listed in the Worldwide Directory for those items.

(ii) Intrastate commerce of meat and meat products and poultry and poultry products for direct delivery to military installations within the same state (intrastate) may be supplied when the items are processed in establishments under state inspection programs certified by the USDA as being "at least equal to" the Federal Meat and Poultry Products Inspection Acts. The item, to be acceptable, shall, on delivery, bear on the product, its wrappers or shipping container, as applicable, the official inspection legend or label of the inspection agency and applicable establishment number.

(iii) Shell eggs may be supplied from establishments listed in the "List of Plants Operating under USDA Poultry and Egg Grading Programs" published by the USDA, Agriculture Marketing Service (AMS) at <http://www.ams.usda.gov/poultry/grading.htm>.

(iv) Egg products (liquid, dehydrated, frozen) may be supplied from establishments listed in the "Meat, Poultry and Egg Product Inspection Directory" published by the USDA FSIS at <https://www.fsis.usda.gov/inspection/establishments/meat-poultry-and-egg-product-inspection-directory>. All products, to be acceptable, shall, on delivery, bear on the product, its wrappers or shipping container, as applicable, the official inspection legend or label of the inspection agency and applicable establishment number.

(v) Fish, fishery products, seafood, and seafood products may be supplied from establishments listed under "U.S. Establishments Approved For Sanitation And For Producing USDC Inspected Fishery Products" in the "USDC Participants List for Firms, Facilities, and Products", published electronically by the U.S. Department of Commerce, National Oceanic and Atmospheric Administration Fisheries (USDC, NOAA) (available at: seafoodinspection.nmfs.noaa.gov). All products, to be acceptable, shall, on delivery, bear on the product, its wrappers or shipping container, as applicable, the full name and address of the producing facility.

(vi) Pasteurized milk and milk products may be supplied from plants having a pasteurization plant compliance rating of 90 percent or higher, as certified by a state milk sanitation officer and listed in "Sanitation Compliance and Enforcement Ratings of Interstate Milk Shippers" (IMS), published by the U.S. Department of Health and Human Services, Food and Drug

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Administration (USDHHS, FDA) at <http://www.fda.gov/Food/GuidanceRegulation/FederalStateFoodPrograms/ucm2007965.htm>. These plants may serve as sources of pasteurized milk and milk products as defined in Section I of the "Grade `A' Pasteurized Milk Ordinance" (PMO) published by the USDHHS, FDA at <https://www.fda.gov/food/guidance-documents-regulatory-information-topic-food-and-dietary-supplements/milk-guidance-documents-regulatory-information>.

(vii) Manufactured or processed dairy products only from plants listed in Section I of the "Dairy Plants Surveyed and Approved for USDA Grading Service", published electronically by Dairy Grading Branch, AMS, USDA (available at: <https://apps.ams.usda.gov/dairy/ApprovedPlantList/>) may serve as sources of manufactured or processed dairy products as listed by the specific USDA product/operation code. Plants producing products not specifically listed by USDA product/operation code must be Worldwide Directory listed (e.g., plant is coded to produce cubed cheddar but not shredded cheddar; or, plant is coded for cubed cheddar but not cubed mozzarella). Plants listed in Section II and denoted as "P" codes (packaging and processing) must be Worldwide Directory listed.

(viii) Oysters, clams and mussels from plants listed in the "Interstate Certified Shellfish Shippers Lists" (ICSSL), published by the USDHHS, FDA at <http://www.fda.gov/food/guidanceregulation/federalstatefoodprograms/ucm2006753.htm>.

(3) Establishments exempt from Worldwide Directory listing. Refer to AR 40-657/NAVSUPINST 4355.4H/MCO P1010.31H, Veterinary/Medical Food Safety, Quality Assurance, and Laboratory Service, for a list of establishment types that may be exempt from Worldwide Directory listing. (AR 40-657 is available from National Technical Information Service, 5301 Shawnee Road, Alexandria, VA 22312 ; 1-888-584-8332 ; or download from web site: http://www.apd.army.mil/pdffiles/r40_657.pdf) For the most current listing of exempt plants/products, see the Worldwide Directory (available at: <http://phc.amedd.army.mil/topics/foodwater/ca/Pages/DoDAApprovedFoodSources.aspx>).

(4) Subsistence items other than those exempt from listing in the Worldwide Directory, bearing labels reading "Distributed By", "Manufactured For", etc., are not acceptable unless the source of manufacturing/processing is indicated on the label or on accompanying shipment documentation.

(5) When the Military Medical Service or other Federal agency acceptable to the Military Medical Service determines the levels of food safety and food defense of the establishment or its products have or may lead to product contamination or adulteration, the Contracting Officer will suspend the work until such conditions are remedied to the satisfaction of the appropriate inspection agency. Suspension of the work shall not extend the life of the contract, nor shall it be considered sufficient cause for the Contractor to request an extension of any delivery date. In the event the Contractor fails to correct such objectionable conditions within the time specified by the Contracting Officer, the Government shall have the right to terminate the contract in accordance with the "Default" clause of the contract.

(b) Delivery conveyances.

The supplies delivered under this contract shall be transported in delivery conveyances maintained to prevent tampering with and /or adulteration or contamination of the supplies, and if applicable, equipped to maintain a prescribed temperature. The delivery conveyances shall be subject to inspection by the government at all reasonable times and places. When the sanitary conditions of the delivery conveyance have led, or may lead to product contamination, adulteration, constitute a health hazard, or the delivery conveyance is not equipped to maintain prescribed temperatures, or the transport results in product `unfit for intended purpose', supplies tendered for acceptance may be rejected without further inspection.

VI. MARKING OF SHIPPING CONTAINERS AND MARKING OF UNIT LOADS

All Shipping Containers and Unit Loads shall be clearly marked, in accordance with DLA Troop Support Form 3556 entitled "Marking Instructions for Boxes, Sacks, and Unit Loads of Perishable and Semi-perishable Subsistence, dated April 2014, with the following information on two adjacent sides of the load with the largest characters possible as follows:

Unitized Ration Component

National Stock Number

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Item Name

Date of Pack and Lot Number

Number of Shipping Containers per Pallet

Contract Number

Contractor's name and Address

Inspection Test Date (ITD)

Note: For the Inspection Test Date, the expected shelf life is found in the applicable solicitation/contract. To calculate the ITD, add the shelf life value to the month/year date of pack.
Example, if the Date of Pack is June 2024, and the shelf life is 36 months (3 years), then the ITD is computed as follows: 6/24 + 3 years = 6/27. If labels are used, they shall be permanently affixed with water-resistant adhesive tape.

Shipments without the appropriate Shipping Container and Unit Load Markings will be rejected and returned to origin, or at the Contracting Officers discretion, reworked at a labor rate determined by the destination activity (not DLA Troop Support).

VII. UNITIZATION

Unit loads shall have the shipping containers arranged on a 40 inch by 48 inch commercial wood or plywood four-way entry pallet, or on a 48 inch by 40 inch Grocery Manufacturers of America wood four-way entry pallet. The load shall be bonded with non-metallic strapping, shrink or stretch film, or others means that comply with carrier rules and regulations applicable to the mode of transportation (adhesive bonding is not acceptable).

Bonding material shall secure the load to the pallet to form a consolidated, stable cargo which can be handled as a unit. For example, when strapping is used to secure the load, the straps shall pass under the top deck boards of the pallet. When stretch or shrink film is used, it must be applied low enough on the pallet to secure the load to the pallet. The unit load height shall not exceed 50 inches.

Inspection of unit loads shall be in accordance with classification Type III, Class G of DLA Troop Support Form 3507 of April 2014 entitled "Loads, Unit: Preparation of Semi-perishable Subsistence Items."

NOTE: The unit load dimensions are 40 inches in length by 48 inches in width and 50 inches in height These dimensions are exact and can be no larger than what is specified. No overhang is permitted.

REQUIREMENTS FOR TREATMENT OF WOOD PACKAGING MATERIAL (WPM)
WOOD PACKAGING MATERIAL (WPM) WILL BE USED TO MAKE SHIPMENTS UNDER THIS CONTRACT AND/OR WHEN WPM IS BEING ACQUIRED UNDER THIS CONTRACT.

Wood packaging material (WPM) means wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frame and cleats. The definition excludes materials that have undergone a manufacturing process, such as corrugated fiberboard, plywood, particleboard, veneer, and oriented strand board (OSD).

All Wood Packaging Material (WPM) used to make shipments under DoD contracts and/or acquired by DoD must meet requirements of International Standards for Phytosanitary Measures (ISPM) 15, "Guidelines for Regulating Wood Packaging Materials in International Trade." DoD shipments inside and outside of the United States must meet ISPM 15 whenever WPM is used to ship DoD cargo.

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All WPM shall comply with the official quality control program for heat treatment (HT) or kiln dried heat treatment (KD HT) in accordance with American Lumber Standard Committee, Incorporated (ALSC) Wood Packaging Material Program and WPM Enforcement Regulations (see <http://www.alsc.org/>).

All WPM shall include certification/quality markings in accordance with the ALSC standard. Markings shall be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides of the pallet and be contrasting and clearly visible. All containers shall be marked on a side other than the top or bottom, contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ASLC approved DUNNAGE stamp.

Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry. The Agency reserves the right to recoup from the Contractor any remediation costs incurred by the Government.

VIII. QUALITY ASSURANCE PROVISIONS INSPECTION/ACCEPTANCE

The contractor must meet all characteristics specified herein. For product requiring contractor-paid USDA, only end-item inspection of the finished product for compliance with contract requirements shall be lot inspected by USDA, AMS, FV, PPB. In addition, Government inspection shall also be at destination for identity, count and condition for all terms and conditions of the contract. This shall include but is not limited to the following:

1. All shipments must be accompanied by an accurate DD-250, and all other pertinent invoices as required.
2. All unit loads must be marked in accordance with DLA Troop Support Form 3556.
3. All unit loads shall be stable and not exceed 50 inches in height including pallet material.
4. All delivered product shall be free of defects.
5. All shipments must contain the correct quantity as specified by DLA Troop Support.
6. Appointments must be scheduled with the receiving activity prior to delivery.
7. All delivered product must meet or exceed the appropriate product requirements as described in this Solicitation.
8. All delivered products must meet the required date of pack/shelf-life requirements.
9. To determine the date of pack, any closed date code must be accompanied with documentation deciphering the closed product code.
10. All delivered products must be free of insect and rodent infestation.

Failure to comply with ANY of the above conditions may result in the shipment(s) being rejected and returned to origin, or at the Contracting Officer's discretion reworked at a labor rate determined by the destination activity (not DLA Troop Support).

QUALITY ASSURANCE PROVISIONS:

By submitting an offer, the contractor certifies that the product offered meets: the specified finished product salient characteristics and all requirements of this contract; conforms to the producer's own specifications and standards, including product characteristics, manufacturing procedures, quality control procedures, and storage and handling practices; has a national or regional distribution from storage facilities located within the United States, its territories, or possessions; and is sold on the commercial market.

The Government reserves the right to determine proof of such conformance prior to the first delivery from the point of origin and anytime thereafter, as may be necessary, to include delivery at final destination, and for the time the product is covered under warranty, to determine conformance with the provisions of the contract.

End item lots determined nonconforming may be reworked to correct or screen out the defective units. Rework shall only be

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considered acceptable to the Government when the rework procedure has a reasonable probability of correcting the deficiency.

An end item lot rejected by the contractor or Government must be reworked and re-offered within 30 days from the date of initial rejection.

The supplies or products furnished under the contract shall be produced in accordance with the provisions of 21 CFR, Part 110, "Current Good Manufacturing Practices in Manufacturing, Packing or Holding Human Food," and all regulations referenced therein.

If FAR Clauses 52.246-2 and 52.246-11 are applicable to this solicitation/contract they shall be cited to properly enforce the Higher Level Contract Quality requirements.

In addition to any inspection requirements cited in contract and/or prime documents, inspection for packaging, labeling and packing, and marking shall be in accordance with the quality assurance provisions contained in this solicitation.

The Quality Assurance Provisions found in Section Quality/Technical of this solicitation are required for DCMA and Government inspection, unless otherwise specified by this solicitation/contract.

IX. DATE OF PACK

Acceptance will be limited to product processed and packed subsequent to date of award of delivery order. Additionally, all shipments of components/product from a producer to destination/assembly points shall not be older than 90 days at delivery.

X. REWORK OF NONCONFORMING PRODUCT PRE OR POST ACCEPTANCE

Rework of Nonconforming Product: The Government QAR must be informed and provided documentation of all rework results when product is presented for Government verification inspection or prior to Government inspection as indicated below.

A. Corrective Action (Rework/Screen Inspections) Taken Prior To Government Verification Inspection (Receipt, In-Process And End-Item Inspections): Unless otherwise specified below, all reworks and screening inspections conducted prior to the Government verification inspection do not require approval from the Government. Although the GQAR must be informed of all reworks, the contractor is not required to obtain approval to take corrective and preventive action as deemed necessary to ensure compliance with contractual requirements. For reworks requiring the Government's approval (as specified below), the contractor may submit a Standard Rework Procedure (SRP), for certain defects, under the contractor's documented QSP section XII - Corrective and Preventive Action Program. The SRPs must be specific and these must be evaluated by DLA Troop Support-FTR, and DLA Troop Support-FTSC, and approved by the applicable Contracting Officer.

NOTE: All requests for rework shall be accompanied with a COMPREHENSIVE rework plan. The rework plan will include rational information and data that supports the rework plan and ensures the elimination of nonconforming material from the lot. When a contractor determines as a result of his end item inspection(s) or QSP that supplies do not conform to contractual requirements and the supplies cannot be reworked (such as drained weight, viscosity, piece size, residual air, etc), he has the alternative to request the Contracting Officer for a waiver for the nonconforming requirement. If the Contracting Officer approves the waiver request for a specific requirement, the written waiver approval shall be provided to the GQAR when the supplies are presented for Government Verification Inspection (the skip-lot inspection does not apply in this case). The GQAR shall inspect the supplies for compliance with all requirements of the contract, except the waived requirement. The Contracting Officer, in special circumstances, may request the GQAR to inspect for the non-conforming characteristics also, after the waiver for the nonconforming requirement has been provisionally approved, to determine severity of nonconformance only. After any lot's failure or rework, if the lot is reinspected, it will be both Contractor and Government inspected at the next higher sample size; however, the accept/reject numbers used for the normal inspection will be used.

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B. The Following Reworks Must Be Coordinated With The Supervisory GQAR And Approved By The Applicable DLA Troop Support-FTR Office.

1. Insect or Rodent Infestation/Contamination: Reworks must be approved by DLA Troop Support-FTSC.

2. Food Safety and Foreign Material: All corrective actions for product retained due to processed/unprocessed container mix-ups must be approved by FTR. Thermal process deviations or deviations from the preparation, formulation or critical factors cited in the approved process schedule must be accompanied by a detailed letter from the plant's Processing Authority. The involved subcode(s), the deviation, and the disposition of the product shall be clearly identified when the complete lot is presented for Government end item verification inspection. These requirements are in addition to applicable Code of Federal Regulations or other regulatory requirements (USDA-FSIS, FDA).

Foreign material identified during normal in-process control actions does not require a waiver request from DLA Troop Support FTR, but does require USDA notification of the incident. However, foreign material discovered during the Contractor or GQAR/USDA end item inspection is cause for rejection of the lot. Rework requests that involve foreign material identified during end item inspections require approval from DLA Troop Support FTR before the rework activity can proceed.

Note: A notification of nonconformance containing ineffective corrective actions, as identified by USDA, require DLA-TS attention and action

“Retesting/re-inspection/rework of product that tested positive for food borne pathogens (salmonella, e. coli, etc.) is not authorized.”

Note: Deviations (that occur during or prior to the production of a product) from specific preparation/ formulation/ingredient requirements cited in the specifications shall be submitted as a request for product deviation and must be approved and coordinated with the Specification Preparing Activity (DEVCOM SC) through the applicable Contracting Officer.

3. Container Integrity Defects: All reworks due to container integrity defects noted during the producer's end item inspection (for critical container defects only) or Government final lot end item verification inspection, must be approved by FTR unless 100% primary container rework of the entire lot is conducted at source (Note: All second time reworks must be approved by the applicable FTR office). All containers exhibiting same or other container integrity defects must be removed during the 100% primary container rework and noted on the rework paperwork. Reworked lots will be inspected or re-inspected, as applicable, by the contractor at the location of the rework using the next larger sample size (for example, from 200 samples to 315, or if a second rework, from 315 samples to 500 samples). Rework results must be included with other paperwork when the lot is presented for Government end item verification inspection.

4. Second Time Reworks: All second time reworks must be approved by the applicable FTR office.

5. Nonconformances Noted During The Government End Item Verification Inspection:

All rework requests submitted for defects noted during Government end item verification inspections must be approved by the applicable Contracting Officer, unless exempted under paragraph 3 above.

C. Contractor's Quality History:

1. Effectiveness of corrective actions (rework/screen inspections) taken by the contractor prior to Government end item verification inspection (receipt, in-process and contractor's end-item inspections) will be determined by the results of the end item verification inspection performed by the GQAR. **Corrective actions taken to ensure compliance with the contractual requirements prior to the Government end item verification inspection will not be counted against the**

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contractor's quality history. If product is found conforming during the Government end item verification inspection, the corrective action will be determined to have been effective. However, all requests for waivers and product deviations will be counted.

2. If product is found nonconforming during the Government end item verification inspection following contractor corrective action for the same defect (or defect category in case of critical container defects) for which the contractor took a corrective action, the corrective action will be determined to have been ineffective. In addition to any action taken, the contractor must reevaluate their documented QSP and/or the implemented corrective and preventive action program by an internal audit and results must be submitted to DLA Troop Support-FTSB (Quality Systems Auditors). **All corrective actions (rework/screening inspections, etc.) taken by the contractor due to a Government end item verification inspection rejection will be documented in the contractor's quality history records.**

NOTE: If the contractor elects to rework nonconforming product, it must be reworked and reoffered within 30 days from date of initial rejection.

All requests for rework shall be accompanied with a **comprehensive** rework plan. The rework plan will include rational information and data that supports the rework plan and ensures the elimination of nonconforming material from the lot. See "Request for Rework, Request for Waiver, Request for Deviation, or Re-inspection of Nonconforming Supplies".

D. Request for Rework, Request for Waiver, Request for Deviation, or Re-inspection of Nonconforming Supplies

1. When contractor inspection or QSP, or Government verification by the QAR, reveals a process deviation or nonconforming lot, the contractor's written request for deviation, waiver, rework or re-inspection of the nonconforming lot(s) must be furnished, as appropriate to the Contracting Officer and cognizant Government QAR and shall at a minimum contain the following:

NOTE: Subject line should include what is being asked for (i.e.: Request for Waiver for Drain Weight of Beef Stew or Request for Rework for Residual Air for Apple Dessert)

- a. Type of Request: Waiver, Notification, Re-inspection, Rework
- b. Approval Required from DLA: Yes or No
- c. Contractor Name/Address
- d. Contract Number
- e. Product Name
- f. National Stock Number
- g. Batch Number(s) (If Applicable)
- h. Sublot(s) (If Applicable)
- i. Lot Number(s)
- j. Process Category (i.e. Work-progress/End Item)
- k. Quantity
- l. Specification Requirement Number (PCR, CID, etc)
- m. Sample Size; Defect; Accept/Reject
- n. Defect Classification: Critical, Major, Minor, NA
- o. Inspection Failure (Summary of non-conformances)
- p. Failure Identified: Processing, Packaging, End Item
- q. Inspector: In-plant/Contractor or USDA
- r. Date of Incident
- s. Attachments (Provide in-house, USDA worksheets, in-process data)
- t. Root Cause of nonconformance or deviation (Describe using a short detailed paragraph; Tell a story of the incident)
- u. Corrective Action (Describe using a short detailed paragraph)
- v. Preventive Action (Describe using a short detailed paragraph; if preventive action is not possible, state why)

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- w. Occurrence (Has this occurred before/when; if yes, what was the date/contract/lot number of last occurrence)
- x. Estimated Cost
- y. Effect on Delivery
- z. Justification for request (What are you asking for?)

NOTE: All requests for rework shall be accompanied with a COMPREHENSIVE rework plan. The rework plan will include rational information and data that supports the rework plan and ensures the elimination of nonconforming material from the lot. After any lot's failure or rework, if the lot is re-inspected, it will be both Contractor and Government inspected at the next higher sample size; however, the accept/reject numbers used for the normal inspection will be used.

2. When a valid technical reason for re-inspection without rework is offered and permission is granted by the PCO, the contractor shall take corrective action to eliminate the cause of the inspection revealed failure; reinspect the non-reworked lot after taking the corrective action, and evaluate the results of the initial inspection and the re-inspection by means of recognized statistical methods.

a. If the statistical tests reveal no significant difference between the results of the two inspections, acceptability will be based on re-inspection results. A significant difference is one that is real and not due to chance variation. Statistically, a difference which has a 0.05 probability of occurring by chance alone is usually considered a significant difference.

b. If such statistical tests reveal no significant difference between the results of the two inspections, both results will be reported to the Contracting Officer.

1. The results of the two inspections will be averaged and acceptability will be based on whether the resulting average meets the requirement, when the requirement is an average (variable) requirement.

2. The results of the initial (original) inspection will be the basis for the acceptability decision when the requirement is a unit (attribute) requirement.

XI. INTEGRATED PEST MANAGEMENT (IPM) and FOOD DEFENSE/PROTECTION PLAN

A. INTEGRATED PEST MANAGEMENT

The procedures contained in the "Integrated Pest Management (IPM) Program Requirements for Operational Rations," of 15 November 2017 are required and apply to all Operational Rations components. Each contractor is to have an IPM program in place prior to the initiation of production of Government product. The IPM plan is required to be submitted to DLA Troop Support upon submittal of proposals. Associated pesticide labels and SDS documents are not required but are to be made available upon request by DLA Troop Support. The contractor shall have those documents available for on-site review during a Quality Systems Management Visit (QSMV) or Quality Systems Compliance Audit. In addition, evidence of an insect or rodent infestation, or contamination involving any end item will be cause for rejection of the involved lot. IPM program requirements can be found on the DLA Troop Support website at: https://www.dla.mil/Portals/104/Documents/TroopSupport/Subsistence/FoodSafety/FoodQuality/TS_ipm-cpaf_171120.pdf

B. FOOD DEFENSE PLAN

Currently, all DLA Troop Support Subsistence contracts have a requirement for submission and implementation of some type of Food Defense Plan at each contractor facility. As a result of increased risk for the potential of intentional food tampering the plan shall describe (in general terms) the type of preventive measures that are taken or will be taken to reduce Food Defense

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Plan vulnerabilities and to protect the food intended for DLA Troop Support's customers at CONUS and OCONUS locations. The plan must include preventive steps taken to safeguard product from intentional tampering/contamination during all stages of receipt, production, storage, assembly, delivery, and shipment. Areas of concern listed in this checklist must be addressed in the plan. The following information may be covered in the Food Defense Plan or under other pertinent areas of the QSP, if a QSP is required for the facility. If some of the Food Defense information is covered in the QSP (e.g., receipt inspection, storage, warehousing, training, traceability, mock recalls, etc.) cross-reference the applicable Section/Area of the QSP. If the plan is submitted with the QSP, a rating (separate from the QSP) of acceptable or unacceptable will be assigned to the Food Defense/Security/Force Protection Plan. The Food Defense Plan will be received, reviewed, rated, and kept on record in the Quality Audits & Product Protection Branch (DTA Troop Support-FTSB). Note: Points will be deducted for not responding to a question with a YES, NO, N/A or for not providing the information requested (e.g., establishment registration information). To download a copy of the DLA Troop Support Food Defense Checklist go to <https://www.dla.mil/Troop-Support/Subsistence/Food-Safety/Food-Quality/> or contact the applicable DLA Troop Support Contracting Officer or the Quality Audits & Product Protection Branch (DLA Troop Support-FTSB). The Quality Audits Food Defense Branch (FTSB) is the only DLA/DLA Troop Support office authorized to receive, review and approve Food Defense Plans. ALL Food Defense Plans and QSPs are maintained and secured by FTSB.

C. CURRENT GOOD MANUFACTURING PRACTICES IN MANUFACTURING, PACKAGING OR HOLDING HUMAN FOOD

Compliance with the provisions contained in Title 21, Code of Federal Regulations Part 110 "Current Good Manufacturing Practice in Manufacturing, Packaging or Holding Human Food," and all regulations referenced herein, is required. In addition, the contractor is required to comply with all with the provisions contained within specific parts of the Code of Federal Regulations. For example, low-acid canned food manufacturers, Part 110 and 113 are applicable.

XII. ENTRY INTO PLANT

The Contracting Officer or any Government personnel designated by him shall be permitted entry into the Contractor's and Subcontractor's plants at any time during the effective period of the contract. Except for inspection services, the Contracting Officer shall give prior notice of the purpose of the meeting and shall furnish dates of the visit.

XIII. PLACE OF PERFORMANCE

- A. The offeror must stipulate in its proposal to this solicitation information pertinent to the place of performance.
- B. Any change in place(s) of performance cited in this offer and in any resulting contract is prohibited unless it is specifically approved in advance by the Contracting Officer.

XIV. PACKAGING:

If applicable, preservation, packaging, etc. furnished by suppliers shall meet or exceed the following requirements: Unit packages shall be designed and constructed so that the contents of each package shall be protected from damage during shipment and storage. Unit packages shall also be able to withstand subsequent handling. Unit packs susceptible to corrosion or deterioration shall be protected by preservative coatings. Items requiring protection from physical damage, or which are fragile in nature (i.e., glass) shall be protected by wrapping, cushioning, etc. or other means to mitigate damage during handling and shipment. If screw caps are used, they shall be secured to the bottles with a band of plastic shrink film or plastic tape. All bottles shall be hermetically sealed (inner seal) and secured to withstand any position in the shipping container without leaking.

XV. LABELING:

If applicable, labeling for unit and intermediate containers shall meet those used in the commercial distribution or over the counter retail sales. The labeling shall be sufficient to clearly and visibly identify the contents of the package. All markings

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must comply with the applicable laws as set forth by the Federal Food Drug and Cosmetic Act and regulations promulgated there under.

XVI. PACKING:

If applicable, the shipping container (including any necessary blocking, bracing cushioning or waterproofing) shall comply with the regulations of the carrier used and provide safe delivery to the destination point at the lowest possible tariff cost. It shall be capable of multiple handling and storage under favorable conditions for a minimum of one year.

XVII. GENERAL INSPECTION REQUIREMENTS (Formerly 52.246-9023, AUG 2017)

A. Inspection.

1. The Contractor shall employ the services of the United States Department of Agriculture (USDA), Agricultural Marketing Service (AMS) or U.S. Department of Commerce (USDC), National Marine Fisheries Service (NMFS) to accomplish in process origin inspection (examination and testing) and sampling as required herein and in the applicable commodity specifications. The Contractor shall bear all expenses incident thereto, including costs of samples and all associated costs for preparation and mailing. Costs shall be assessed in accordance with the Government laboratory testing charges for individual test characteristics and number of tests required by the specification or contract. A list of fees may be obtained from the appropriate inspection activity.

The Contractor shall furnish the Government grader/inspector a copy of the complete contract and supporting contractual documents (i.e., individual solicitation, contract modifications, waivers, and referenced specifications). Offerors may contact the appropriate Government office to discuss inspection procedures prior to submitting offers; however, nothing provided thereby shall be construed to alter the applicable specification in any manner or to reduce the responsibility of Contractor to comply with such specifications.

2. The Contractor shall take action to correct or replace nonconforming supplies.
3. The Government will perform an inspection at destination for identity, condition and quantity. If there is evidence that the supplies do not conform with contract requirements, the inspector shall report the findings of his inspection to the appropriate DLA Troop Support office (operational rations business unit, food services business unit, produce business unit, product services office, etc.). The applicable DLA Troop Support office shall report the findings to the Contracting Officer or the ordering officer, who shall in turn notify the Contractor.
4. Supplies will be rejected when any evidence of insect activity (live or dead in any stage of development) or rodent activity/contamination is found in or on product, packaging, packing or unitization.
5. Nonconforming supplies rejected at origin will not normally be accepted by the Government. However, the Contractor may elect to petition the Contracting Officer in writing to grant a waiver of the contract requirements for which supplies have been found nonconforming, and to accept the supplies "as is" with appropriate price consideration.
6. The Contractor shall furnish all inspection gauges, instruments, scales, tools or other material required by the designated Government inspection activity to complete the necessary inspection. The Government inspector will ensure that the Contractor has had such gauges, instruments, scales, tools, or other material

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required to complete inspection properly calibrated and, if necessary, certified. When required by the contract/solicitation the Government inspector will collect insect specimens from plant production and storage areas and submit the specimens to the nearest military entomological laboratory for identification.

When the collection of insects is required, the Contractor shall be responsible for supplying and installing specified insect monitoring devices required to accomplish this task.

- B. Standby test samples. The Government reserves the right to withdraw and hold standby samples of components or finished products or both (the quantity of which shall be not more than twice that required by the specification) for inspection purposes. Samples not used will be returned to the Contractor.
- C. USDA and USDC certificates. Procedures for preparation and distribution of certificates shall be in accordance with the regulations, file codes, instructional manuals, etc., of the respective inspection agency

(END)

A variation in the quantity of any item called for by this contract will not be accepted unless the variation has been caused by conditions of loading, shipping, or packing, or allowances in manufacturing processes, and then only to the extent, if any, specified in the paragraph below

The permissible variation shall be limited to:

- 2 percent increase
- 2 percent decrease

This increase or decrease will apply to delivery orders

ELECTRONIC INVOICING BY SUPPLIERS VIA WIDE AREA WORKFLOW (WAWF):

All suppliers are required to process invoices electronically by using WAWF. Suppliers must have at least two trained company representatives with access to WAWF. A copy of the WAWF Report and a Bill of Lading shall be provided to Tracy Depot for each individual shipment. The WAWF report and Bill of lading shall be presented by the truck driver, or it must be attached to the last pallet of a shipment. The WAWF report is the only acceptable invoice and must be complete in order to receive payment. This is a condition for contract award.

Wide Area Workflow (WAWF) is a secure web-based system for electronic invoicing, receipt, and acceptance. WAWF allows government vendors to submit and track invoices and receipt/acceptance documents over the web and allows government personnel to process those invoices in a real-time, paperless environment. It is also the only application that will be used to capture the Unique Identification (UID) of Tangible Items information.

WAWF System Requirements

WAWF is a free internet application. Contractors should refer to the "Machine.

Setup" information on the WAWF homepage, <https://wawf.eb.mil>

The minimum system requirements are:

- 133 MHz or more Pentium microprocessor (or equivalent) SVGA Color Monitor (minimum 256 color)
- 64 MB RAM (minimum)
- Internet Access (broadband recommended)

WAWF is in accordance with the 2001 National Defense Authorization Act (DFARS 252.232-7003/252.232.7003

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Electronic Submission of Payment Requests - January 2004) which requires claims for under a Department of Defense Contract to be submitted in electronic form.

As of March 03, 2008, DOD has issued a final rule amending the Defense Federal Acquisition Regulation supplement (DFARS) to require use of the Wide Area Workflow as the only acceptable electronic system for submitting requests for payment (invoices and receiving reports) under DOD contracts.

CAUTION - CONTRACTOR CODE OF BUSINESS ETHICS

FAR Part 3.1002(a) requires all government contractors to conduct themselves with the highest degree of integrity and honesty. Contractors should have a written code of business ethics and conduct within thirty days of award. To promote compliance with such code of business ethics and conduct, contractors should have an employee business ethics and compliance training program that facilitates timely discovery and disclosure of improper conduct in connection with government contracts and ensures corrective measures are promptly instituted and carried out. A contractor may be suspended and/or debarred for knowing failure by a principal to timely disclose to the government, in connection with the award, performance, or closeout of a government contract performed by the contractor or a subcontract awarded there under, credible evidence of a violation of federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in title 18 of the United States Code or a violation of the False Claims Act. (31 U.S.C. 3729-3733)

If this solicitation or contract includes FAR clause 52.203-13 - CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT; the contractor shall comply with the terms of the clause and have a written code of business ethics and conduct; exercise due diligence to prevent and detect criminal conduct; promote ethical conduct and a commitment to compliance with the law within their organization; and timely report any violations of federal criminal law involving fraud, conflict of interest, bribery or gratuity violations found in title 18 of the United States Code or any violations of the False Claims Act. (31 U.S.C. 3729-3733). When FAR 52.203-13 is included in the contract, contractors must provide a copy of its written code of business ethics and conduct to the contracting officer upon request by the contracting officer.

Contract Clauses

Note: 52.212-4, Contract Terms and Conditions --Commercial Products and Commercial Services (DEVIATION 2026-O0038) (FEB 2026) is incorporated in this solicitation by reference. Its full text may be accessed electronically at https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html (Class Deviation 2026-O0038) Text is available for viewing in Subpart 52.2 Text of Provisions and Clauses, through either the HTML or PDF Format links.

ADDENDUM TO 52.212-4

The following paragraph(s) of 52.212-4 are amended as indicated below:

1. Paragraph (b), Inspection/Acceptance, is revised to add FAR clause 52.246-2, Inspection of Supplies - Fixed Price. FAR 52.246-2 expands the definition of "Supplies," to include, but not limit to, raw materials, components, intermediate assemblies, end products, and supply lots. FAR 52.246-2 is required for Product Verification Testing (PVT), which is a requirement on any resulting contract(s). PVT is addressed in full text elsewhere in the solicitation.

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Form (CONTINUED)**3. Paragraph (d), Changes, is deleted in its entirety and replaced with the following:**

(d) Changes.

- (1) The Contracting Officer, at his/her discretion, may unilaterally invoke any of the contingency options set forth in this contract.
- (2) The Contracting Officer may at anytime, by unilateral written order, make changes within the general scope of this contract in any one or more of the following:
 - (i) Method of shipment or packing;
 - (ii) Place, manner, or time of delivery.
- (3) If such change causes an increase or decrease in the cost of, or time required for, performance for any part of the work under this contract, the Contracting Officer shall make equitable adjustment in the contract price, the delivery schedule, or both, and shall modify the contract.
- (4) The Contractor must assert its right to an adjustment under this clause within thirty (30) days from the date of receipt of the written order. However, if the Contracting Officer decides that the facts justify it, the Contracting Officer may receive and act upon a proposal submitted before final payment of the contract.
- (5) Failure to agree to any adjustment shall be a dispute under the Disputes Clause. However, nothing in this clause shall excuse the Contractor from proceeding with the contract.

4. Paragraph (m), Termination for Cause is deleted and replaced with the following:

(m) Termination for Cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If this contract is terminated in whole or in part for cause, and the supplies or services covered by the contract so terminated are repurchased by the Government, the Government will incur administrative costs in such repurchases. The Contractor and the Government expressly agree that, in addition to any excess costs of repurchase, or any other damages resulting from such default, the Contractor shall pay, and the Government shall accept, the sum of \$1,350.00 as payment in full for the administrative costs of such repurchase. This assessment of damages for administrative costs shall apply for any termination for cause following which the Government repurchases the terminated supplies or services together with any incidental or consequential damages incurred because of the termination. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

5. Paragraph (o), Warranty is deleted in its entirety and replaced with the following:

(a) Definitions.

"Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing supplies, or approves specific services as partial or complete performance of the contract.

"Correction," as used in this clause, means the elimination of a defect.

"Supplies," as used in this clause, means the end item furnished by the Contractor and related services required under the contract. The word does not include "data".

(b) Contractor's obligations.

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(1) Notwithstanding inspection and acceptance by the Government of supplies furnished under this contract, or any condition of this contract concerning the conclusiveness thereof, the Contractor warrants that for 6 months after receipt of supplies at destination or, in the case of supplies required to bear an expiration date, for the expiration date indicated in the labeling thereof, all supplies furnished

- (i) Are of a quality to pass without objection in the trade under the contract description;
- (ii) Are fit for the ordinary purposes for which the supplies are used;
- (iii) Are within the variations permitted by the contract, and are of an even kind, quality and quantity within each unit and among all units;
- (iv) Are adequately contained, packaged, and marked as the contract may require; and
- (v) Conform to the promises or affirmations of fact made on the container.

(2) When return of the supplies to the contractor and redelivery, if applicable, is required, transportation charges and responsibility for the supplies while in transit shall be borne by the contractor. Contractor shall also be liable for:

- (i) Handling costs and incidental charges incurred by the Government in the preparation of the above described supplies for return to the contractor and in return of said supplies to storage, after redelivery by the contractor; and
- (ii) For cost of Government examination of the corrected or replaced supplies computed and charged at the flat rate of \$49.28 per hour.

(3) Any supplies or parts thereof, corrected or furnished in replacement under this clause, shall also be subject to the terms of this clause to the same extent as supplies initially delivered. The warranty, with respect to supplies or parts thereof, shall be equal in duration to that in paragraph (b)(1) of this clause and shall run from the date of receipt of the corrected or replaced supplies at destination.

(c) Remedies available to the government.

(1) Notice Requirement: The Contracting Officer shall give written notice to the contractor of any breach of warranties in paragraph (b)(1) of this clause within 7 days from receipt of supplies at destination or, in the case of supplies required to bear an expiration date, no later than one month following the expiration date indicated in the labeling.

(2) Conformance of supplies or parts thereof subject to warranty action shall be determined in accordance with the inspection and acceptance procedures contained in the contract except as provided herein. If the contract provides for sampling, the Contracting Officer may group any supplies delivered under this contract. The size of the sample shall be that required by the sampling procedure specified in the contract for the quantity of supplies on which warranty action is proposed, except when projecting sampling results. Warranty sampling results may be projected over supplies in the same shipment or other supplies contained in other shipments even though all of such supplies are not present at the point of reinspection and regardless of whether such supplies have been issued or consumed, provided (1) the supplies from which the samples were drawn are reasonably representative of the quantity on which warranty action is proposed, and (2) the defects found in the sample size are sufficient to reject the quantity of supplies on which warranty action is proposed, even though the sample size may be less than that required for such quantity. The original inspection lots need not be reconstituted, nor shall the Contracting Officer be required to use the same lot size as on original inspection. Within a reasonable time after the notice, the Contracting Officer may exercise one or more of the following options; and also, following the exercise of any option, may unilaterally change it to one or more of the other options set forth below:

- (i) Require an equitable adjustment in the contract price for any supplies or group of supplies;
- (ii) Screen the supplies grouped under this clause at contractor's expense and return all nonconforming supplies to the contractor for correction or replacement;

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(iii) Require the contractor to screen the supplies at depots designated by the Government within the continental United States and to correct or replace all nonconforming supplies;

(iv) Return any supplies or group of supplies under this clause to the contractor (irrespective of the f.o.b. point or the point of acceptance) for screening and correction or replacement;

(v) Return or hold for contractor's account any supplies or group of supplies delivered hereunder, whereupon the contractor shall repay the contract price paid therefore. In such event, the Government may reprocur similar supplies upon such terms and in such manner as the Contracting Officer may deem appropriate, and charge to the contractor the additional cost occasioned the Government thereby.

(3) When remedy (c) (2) (iii) or (c) (2) (iv) of this clause is exercised, the contractor is required to submit in writing and within 30 days after receipt of notice of such invocation a schedule for either:

(i) Correction and/or replacement of all defective supplies and subsequent redelivery of the returned supplies; or,

(ii) Screening defective supplies at each depot involved and subsequent redelivery of all corrected and/or replaced supplies.

Such schedule will become a part of the contract delivery schedule upon agreement thereto by the Government. If the contractor fails to provide an agreeable schedule within the specified period, or any extension agreed to by the Government, the Government may correct the items and charge the contractor's account; or, issue a contract for correction of the items and charge the contractor's account; or, exercise one or more of the remedies specified in paragraph (4) below.

(4) If the contractor fails to accept return of the nonconforming supplies; or, fails to make redelivery of the corrected or replaced supplies to the Government within the time established; or, fails to make progress after their return to correct or replace them so as to endanger performance within the time established for redelivery and does not cure such failure within a period of 10 days (or such longer period as the Contracting Officer may authorize in writing) after receipt of notice from the Contracting Officer specifying such failure, the Contracting Officer may exercise one or more of the following remedies:

(i) Retain or have the contractor return the nonconforming supplies and require an equitable adjustment in the contract price.

(ii) Return or hold the nonconforming supplies for contractor's account, or require the return of the nonconforming supplies and then hold for contractor's account, whereupon the contractor shall repay the contract price therefore. In such event, the Government may reprocur similar supplies upon such terms and in such manner as the Contracting Officer may deem appropriate, and charge to the contractor the additional costs occasioned the Government thereby.

(iii) If the contractor fails to furnish timely disposition instructions, dispose of the nonconforming supplies for the contractor's account in a reasonable manner, in which case the Government is entitled to reimbursement from the contractor or from the proceeds for the reasonable expenses of the care and disposition of the nonconforming supplies, as well as for any other costs incurred or to be incurred.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

(d) Failure to agree upon any determination to be made under this clause shall be a dispute concerning a question of fact within the meaning of the "Disputes" clause of this contract.

(e) When the contract specifies ultimate delivery of supplies to a location outside the contiguous United States, such location shall be deemed the destination for purposes of this clause.

Clauses for Commercial Contracts

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

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(1) **52.203-19**, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) **52.240-91**, Security Prohibitions and Exclusions (DEVIATION 2026-O0038) (FEB 2026)

(3) **52.209-10**, Prohibition on Contracting with Inverted Domestic Corporations (DEVIATION 2026-O0038) (FEB 2026)

(4) **52.232-40**, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801)

(5) **52.233-3**, Protest after Award (DEVIATION 2026-O0038) (FEB 2026) (31 U.S.C. 3553).

(6) **52.233-4**, Applicable Law for Breach of Contract Claim (DEVIATION 2026-O0038) (FEB 2026) Public Laws 108-77, 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the contracting officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

 X (1) **52.203-6**, Restrictions on Subcontractor Sales to the Government (JUN 2020) 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 2402).

 X (2) **52.203-13**, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

 (3) **52.203-15**, [Reserved]

 (4) **52.203-17**, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community - See FAR 3.900(a).

 X (5) **52.204-10**, Reporting Executive Compensation and First-Tier Subcontract Awards (DEVIATION 2026-O0038) (FEB 2026) (Pub. L. 109-282) (31 U.S.C. 6101 note).

 (6) [Reserved].

 (7) **52.204-14**, Service Contract Reporting Requirements (DEVIATION 2026-O0038) (FEB 2026) (Pub. L. 111-117, section 743 of Div. C.);

 (8) **52.204-15**, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (DEVIATION 2026-O0038) (FEB 2026) (Pub. L. 111-117, section 743 of Div. C.).

 X (12) **52.209-6**, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (DEVIATION 2026-O0038) (FEB 2026)

 X (13) **52.209-9**, Updates of Publicly Available Information Regarding Responsibility Matters (DEVIATION 2026-O0038) (FEB 2026) (41 U.S.C. 2313).

 (14) **[Reserved]**.

 (15) **52.219-3**, Notice of HUBZone Set-Aside or Sole-Source Award (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 657a).

 X (16) **52.219-4**, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (DEVIATION 2026-O0038) (FEB 2026) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

 (17) **[Reserved]**

 (18)(i) **52.219-6**, Notice of Total Small Business Set-Aside (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 644).

 (ii) **Alternate I** (MAR 2020) of 52.219-6

 (19)(i) **52.219-7**, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

 (ii) **Alternate I** (Class Deviation 2020-O0008) (MAR 2020) of 52.219-7

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- X (20) **52.219-8**, Utilization of Small Business Concerns (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 637 (d)(2) and (3)).
- X (21)(i) **52.219-9**, Small Business Subcontracting Plan (DEVIATION 2026-O0038) (FEB 2026) 15 U.S.C. 637 (d)(4)).
- _____ (ii) **Alternate I** (DEVIATION 2026-O0038) (FEB 2026) of 52.219-9
- X (iii) **Alternate II** (DEVIATION 2026-O0038) (FEB 2026) of 52.219-9
- _____ (iv) **Alternate III** (DEVIATION 2026-O0038) (FEB 2026) of 52.219-9
- _____ (v) **Alternate IV** (DEVIATION 2026-O0038) (FEB 2026) of 52.219-9
- _____ (22)(i) **52.219-13**, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- _____ (ii) Alternate I (MAR 2020) of 52.219-13
- _____ (23) **52.219-14**, Limitations on Subcontracting, Class Deviation 2021-O0008 (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 637(a)(14)).
- X (24) **52.219-16**, Liquidated Damages --Subcontracting Plan (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 637(d)(4)(F)(i))002E
- _____ (25) **52.219-27**, Notice of Set-Aside for, or Sole Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Under the SDVOSB Program (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 657f).
- X (26)(i) **52.219-28**, Post Award Small Business Program Representation (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 632(a)(2)).
- X (ii) Alternate I (DEVIATION 2026-O0038) (FEB 2026) of 52.219-28
- _____ (27) **52.219-29**, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business (EDWOSB) Concerns (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 637(m)).
- _____ (28) **52.219-30**, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business (WOSB) Concerns Eligible Under the WOSB Program (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 637(m)).
- _____ (29) **52.219-32**, [Reserved]
- _____ (30) **52.219-33**, Nonmanufacturer Rule (DEVIATION 2026-O0038) (FEB 2026) ([15 U.S.C. 637](#)(a)(17)).
- X (31) **52.222-3**, Convict Labor (DEVIATION 2026-O0038) (FEB 2026) (E.O. 11755).
- X (32) **52.222-19**, Child Labor --Cooperation with Authorities and Remedies (DEVIATION 2026-O0038) (FEB 2026) (E.O. 13126).
- _____ (33) **[Reserved]**
- _____ (34) **[Reserved]**
- X (35)(i) **52.222-35**, Equal Opportunity for Veterans (DEVIATION 2026-O0038) (FEB 2026) (38 U.S.C. 4212).
- _____ (ii) Alternate I (July 2014) of 52.222-35.
- X (36)(i) **52.222-36**, Equal Opportunity for Workers with Disabilities (DEVIATION 2026-O0038) (FEB 2026) (29 U.S.C. 793).
- _____ (ii) Alternate I (JULY 2014) of 52.222-36.
- X (37) **52.222-37**, Employment Reports on Veterans (DEVIATION 2026-O0038) (FEB 2026) (38 U.S.C. 4212).
- X (38) **52.222-40**, Notification of Employee Rights Under the National Labor Relations Act (DEVIATION 2026-O0038) (FEB 2026) (E.O. 13496).
- X (39)(i) **52.222-50**, Combating Trafficking in Persons (DEVIATION 2026-O0038) (FEB 2026) (22.U.S.C. chapter 78 and E.O. 13627).

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- ____ (ii) **Alternate I** (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- X (40) **52.222-54**, Employment Eligibility Verification (DEVIATION 2026-O0038) (FEB 2026) (Executive Order 12989)
- ____ (41) (i) **52.223-9**, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ____ (ii) **Alternate I** (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ____ (42) **52.223-11**, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (DEVIATION 2026-O0038) (FEB 2026) (42 U.S.C. 7671).
- ____ (43) **52.223-12**, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (DEVIATION 2026-O0038) (FEB 2026) (42 U.S.C. 7671).
- X (46) **52.223-23**, Sustainable Products and Services (DEVIATION 2026-O0038) (FEB 2026) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- X (47) (i) **52.224-3**, Privacy Training (JAN 2017) (5 U.S.C. 552a).
- ____ (ii) **Alternate I** (JAN 2017) of 52.224-3.
- ____ (48) **52.225-1**, Buy American--Supplies (DEVIATION 2026-O0038) (FEB 2026) (41 U.S.C. chapter 83).
- ____ (49) (i) **52.225-3**, Buy American--Free Trade Agreements--Israeli Trade Act (DEVIATION 2026-O0038) (FEB 2026) (U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ____ (ii) **Alternate I** [Reserved]
- ____ (iii) **Alternate II** (DEVIATION 2026-O0038) (FEB 2026) of 52.225-3.
- ____ (iv) **Alternate III** (DEVIATION 2026-O0038) (FEB 2026) of 52.225-3.
- ____ (v) **Alternate IV** (OCT 2022) of 52.225-3.
- ____ (50) **52.225-5**, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ____ (52) **52.225-26**, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).
- ____ (53) **52.226-4**, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ____ (54) **52.226-5**, Restrictions on Subcontracting Outside Disaster or Emergency Area (DEVIATION 2026-O0038) (FEB 2026) (42 U.S.C. 5150).
- X (56) **52.229-12** Tax on Certain Foreign Procurements (DEVIATION 2026-O0038) (FEB 2026)
- X (57) **52.232-29**, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505), 10 U.S.C. 2307(f)).
- ____ (58) **52.232-30**, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).
- X (59) **52.232-33**, Payment by Electronic Funds Transfer -- System for Award Management (OCT 2018) (31 U.S.C. 3332).
- ____ (60) **52.232-34**, Payment by Electronic Funds Transfer --Other Than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ____ (61) **52.232-36**, Payment by Third Party (DEVIATION 2026-O0038) (FEB 2026) (31 U.S.C. 3332).
- ____ (62) **52.239-1**, [Reserved]
- X (64) **52.242-5**, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d) (12)).
- ____ (65) (i) **52.247-64**, Preference for Privately Owned U.S.-Flag Commercial Vessels (DEVIATION 2026-O0038) (FEB 2026) (46 U.S.C. 55305 and 10 U.S.C. 2631).

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- ☐ (ii) **Alternate I** (APR 2003) of 52.247-64.
☐ (iii) **Alternate II** (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or executive orders applicable to acquisitions of commercial products and commercial services:

[*Contracting Officer check as appropriate.*]

- ☐ (1) **52.222-41**, Service Contract Labor Standards (DEVIATION 2026-O0038) (FEB 2026) (41 U.S.C. chapter 67.).
☐ (2) **52.222-42**, Statement of Equivalent Rates for Federal Hires (DEVIATION 2026-O0038) (FEB 2026) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
☐ (3) **52.222-43**, Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (DEVIATION 2026-O0038) (FEB 2026) (29 U.S.C.206 and 41 U.S.C. chapter 67).
☐ (4) **52.222-44**, Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (DEVIATION 2026-O0038) (FEB 2026) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
☐ (5) **52.222-51**, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (DEVIATION 2026-O0038) (41 U.S.C. chapter 67).
☐ (6) **52.222-53**, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (DEVIATION 2026-O0038) (FEB 2026) (41 U.S.C. chapter 67).
☐ (7) **52.222-55**, Minimum Wages for Contractor Workers Under Executive Order 14026 (DEVIATION 2026-O0038) (FEB 2026).
☐ (8) **52.222-62**, Paid Sick Leave under Executive Order 13706 (DEVIATION 2026-O0038) (FEB 2026) (E.O. 13706).
☒ (9) **52.226-6**, Promoting Excess Food Donation to Nonprofit Organizations. (DEVIATION 2026-O0038) (FEB 2026) (42 U.S.C. 1792).
☐ (10) **52.247-69** Reporting Requirement for U.S.-Flag Carriers Regarding Training to Prevent Human Trafficking (DEVIATION 2026-O0038) (FEB 2026) (49 U.S.C. 40118(g))

(d) *Comptroller General Examination of Record* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records -- Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any

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record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c) and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause --

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712)

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.240-91, Security Prohibitions and Exclusions (DEVIATION 2026-O0038) (FEB 2026)

(viii) 52.219-8, Utilization of Small Business Concerns (DEVIATION 2026-O0038) (FEB 2026) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include -6 in lower tier subcontracts that offer subcontracting opportunities.

(ix) **[Reserved]**

(x) **[Reserved]**

(xi) 52.222-35, Equal Opportunity for Veterans (DEVIATION 2026-O0038) (FEB 2026) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (DEVIATION 2026-O0038) (FEB 2026) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (DEVIATION 2026-O0038) (FEB 2026) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEVIATION 2026-O0038) (FEB 2026) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (DEVIATION 2026-O0038) (FEB 2026), (41 U.S.C. chapter 67).

(xvi) (A) 52.222-50, Combating Trafficking in Persons (DEVIATION 2026-O0038) (FEB 2026) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (DEVIATION 2026-O0038) (FEB 2026) of 52.222-50 (22 U.S.C. chapter 78 E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (DEVIATION 2026-O0038) (FEB 2026) (41 U.S.C. chapter 67.)

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (DEVIATION 2026-O0038) (FEB 2026) (41 U.S.C. chapter 67)

(xix) 52.222-54, Employment Eligibility Verification (DEVIATION 2026-O0038) (FEB 2026) (E. O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (DEVIATION 2026-O0038) (FEB 2026) .

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (DEVIATION 2026-O0038) (FEB 2026) (E.O. 13706).

(xxii) (A)52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

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(B) Alternate I (JAN 2017) of 52.224-3.
 (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).
 (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (DEVIATION 2026-O0038) (FEB 2026) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
 (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.
 (xxvi) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (DEVIATION 2026-O0038) (FEB 2026) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

Addendum

The following additional clauses are set forth in full text:

52.216-19 -- Order Limitations. -- Order Limitations (Oct 1995) -FAR

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than the quantity equivalent to one pallet, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor --

- (1) Any order for a single item in excess of the line item's maximum quantity;
- (2) Any order for a combination of items in excess of the line item's maximum quantity; or
- (3) A series of orders from the same ordering office within 7 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 120 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

52.216-22 INDEFINITE QUANTITY (DEVIATION 2026-O0038) (FEB 2026) FAR

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order

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at least the quantity of supplies or services designated in the Schedule as the “minimum.”

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period ; provided, that the Contractor shall not be required to make any deliveries under this contract after 90 days after the effective period of the contract expires.

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

- FAR: <https://www.acquisition.gov/browse/index/far>
- DFARS: <https://www.acquisition.gov/dfars>
- DLAD: <https://www.acquisition.gov/dlad>
- RFO: https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html

The following additional clauses are incorporated by reference:

CLAUSE NUMBER TITLE/DATE

252.204-7012 Safeguarding Covered Defense Information and Cyber Incident Reporting
(DEVIATION 2026-O0025 (FEB 2026) DFARS

252.209-7004 Subcontracting with Firms that are Owned or Controlled by the Government of a Country That is a
State Sponsor of Terrorism (MAY 2019) DFARS

252.225-7002 Qualifying Country Sources as Subcontractors (MAR 2022) DFARS

52.232-17 Interest (MAY 2014) FAR

52.242-13 Bankruptcy (JUL 1995) FAR

52.242-15

Stop Work Order (AUG 1989) FAR

Solicitation Provisions

FAR 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (DEVIATION 2026-

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O0038) (FEB 2026) - is incorporated in this solicitation by reference. Its full text may be accessed electronically at: https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html

Addendum to 52.212-1:

The following paragraphs of 52.212-1 are amended as indicated below:

1. Paragraph (a), Submission of Offers.

- a. Delete the 1st sentence and substitute the following:

Submit signed and dated offers as specified on page 3 of this solicitation at Block 9 on or before the exact due date/local time as specified on page 3 at Block 8. [] Facsimile offers are NOT authorized for this solicitation. [] Facsimile offers are authorized for this solicitation. Facsimile offers that fail to furnish required representations, or information, or that reject any of the terms, conditions and provisions of the solicitations, may be excluded from consideration. Facsimile offers must contain the required signatures. The Government reserves the right to make award solely on the facsimile offer. However, if requested to do so by the Contracting Officer, the apparently successful offeror agrees to promptly submit the complete original signed proposal. The Government will not be responsible for any failure attributable to the transmission or receipt of the facsimile offer.

- b. Submission Requirements: Offerors are required to submit the completed solicitation, Product Demonstration models, a pricing proposal, and additional submission requirements.

Product Demonstration Models (PDMs)

See Section 4, Subsection I, Paragraph (d) in the Statement of Work for PDM submission instructions.

Price Proposal

Refer to the "Schedule of Supplies" section within the proposal. The Government reserves the right to require information other than cost or pricing data, as defined at FAR 2.101, or cost and pricing data, as applicable and if required to determine price reasonableness of any offer(s).

Offerors must submit pricing for the Instant Powdered Juice Pouches. Pricing must be submitted for all tiers on an F.O.B Destination basis. Failure to offer pricing on all tiers may be deemed as non-acceptance of the item(s) and/or tier(s), which could result in rejection of the entire proposal as technically unacceptable. Different prices may be offered per tier. The Government anticipates awarding contracts on a per-line item basis from this solicitation. Each offer should be priced accordingly. Only one price, per tier will be accepted. Prices must be formatted using no more than two decimal places. (Ex: \$X.XX).

Additional Submission Requirements

Food Defense Plan: In accordance with the Food Defense requirement identified in Section XI, paragraph B, the offeror must submit its Food Defense Plan to describe what procedures are, or will be, in place to prevent product tampering and contamination, and assure overall plant security and food safety. The Plan should be formatted in accordance with, and address the issues contained in, the DLA Food Security Checklist. This plan must be submitted with the offeror's initial offer.

Integrated Pest Program: Contractors and subcontractors must submit an Integrated Pest Management Plan based on the requirements stated in Section XI, paragraph A. This plan must be submitted with the offeror's initial offer.

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Small Business/Subcontracting Plan (applicable to large businesses only): Contractors must submit a Small Business/Subcontracting Plan based on the requirements stated below. This plan must be submitted with the offeror's initial offer.

****Small Business/Subcontracting Plans must address all 15 elements of FAR 52.219-9(d).**

Large business contractors must indicate what portion of the contract will be sourced from both Large Business (LB) and Small Business (SB). Under the portion to be sourced from Small Business, each subcategory (i.e., Small Business, Small Disadvantaged Business (SDB), Women-Owned Small Business (WOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and HUBZone Small Business (HZSB) concerns) must address goals in terms of percentages and total dollars. This information must be provided for the performance period of the contract.

See FAR 2.101 and FAR 19.102 for small business definitions size standards.

The percentages must be formulated using the total to be sourced (i.e., both large and small business total dollars) as the divisor. The offeror must describe the proposed SB, SDB, WOSB, SDVOSB, and HZSB concerns' participation in the performance of this contract at the product supplier levels.

These figures must pertain to the proposed acquisition only. These figures will represent what percentage/dollar value of products are to be supplied under this contract by a SB, SDB, WOSB, SDVOSB, and HZSB manufacturer, grower, or private label holder.

The contractor must obtain at least 32% of the supplies for proposed contract from all SB firms (vs. LB firms) as indicated in the DoD Office of Small Business Programs pertaining to current subcontracting goals. Within the subcategories, the Contractor will obtain the minimum percentage for the following goals: 22% from SB, with individual SB subcategories goals of 5% from SDB, 5% from WOSB, 3% from SDVOSB firms, and 3% from HZSB firms.

Example and format:

The following is the preferred format for the submission of small business data.

	<u>Dollars</u>	<u>Percent</u>
Total Contract Price:	\$1,000,000	100%
Total to be Subcontracted:	\$900,000	90%
To Large Business:	\$630,000	70%
To Small Business:	\$270,000	30%
SB:	\$63,000	7%
SDB:	\$63,000	7%
WOSB:	\$45,000	5%
SDVOSB:	\$36,000	4%
HZSB:	\$36,000	4%

*Note: Total Contract Price cannot be equal to Total to be Subcontracted

Notes:

(1) Please ensure offeror dollars are not included in the total subcontracted dollar value. The total contract value and total subcontract value must not be the same.

When calculating figures for the chart above, the business size of the manufacturer, grower, private label holder is to be considered, NOT the business size of the broker/agent that may have supplied the product to the Contractor.

NOTE: If a contractor has previously submitted a Food Defense Plan and the rating was Acceptable, the

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contractor may reference their Food Defense Plan by the former contract number, and evaluation date. Contractors shall include latest plan updates/revisions/changes and submit changes at time of offer to the Contracting Officer.

2. Paragraph (b), *Period for Acceptance of Offers.*

Change “60 calendar days” to read “180 calendar days”.

52.212-2 EVALUATION--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION 2026-O0038) (FEB 2026)

As prescribed in 12.301(c), the Contracting Officer may insert a provision substantially as follows:

The following paragraph of 52.212-2 is amended as indicated below:

(a) This procurement will utilize Lowest Price Technically Acceptable Source Selection Procedures. The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

(i) Technical Proposal

Product Demonstration Models (PDMs)

The Government requests PDMs and will evaluate the PDMs for compliance with the item descriptions and product specifications and will also evaluate the sensory attributes of the food product to include appearance, odor, flavor, and texture using the recognized 9-point quality rating scale to determine product quality. The PDMs will be evaluated by DEVCOM SC and will be rated “ACCEPTABLE” if it meets the requirement of the item description and its Quality Scale result from DEVCOM SC is equal or above 6. Approval or acceptance of a PDM shall not constitute a waiver of any specification requirement unless specifically stated by the Contracting Officer. The 12 acceptable PDMs will be used as production standards.

If negotiations are conducted, offerors having unacceptable PDMs (Quality Scale is lower than 6) will be given an opportunity to correct deficient PDMs. The final rating will be based on second submission (if negotiations are conducted) and it must be rated “ACCEPTABLE” otherwise the final proposal will be rejected.

Price Proposal

Award(s) will be made on a per line-item basis to the technically acceptable offer with the lowest, total evaluated price to the Government. The Government will determine the lowest, total evaluated price per line item by multiplying the estimated annual quantity for this acquisition by the unit price offered for each tier. Then, the estimated prices for all tiers will be added together to calculate the total evaluated price per line item. The offerors' total evaluated price will be compared to determine the lowest, total evaluated price. The award will be based on the lowest, total evaluated price to the Government. Cost and pricing data will not be required at solicitation closing, but the Government reserves the right to request information other than cost and pricing data.

The Government's rating assessments under low price technically acceptable award methodology will be deemed either acceptable or unacceptable.

The Government intends to award each line item to the responsive and responsible offeror(s) that conforms to the solicitation requirements, with Technical Factors and Price considered. Because the Government contemplates awarding contracts on a per-line-item basis, multiple contracts may be awarded, including contracts that include only a single line item.

Please note, taking exception to any of the terms and conditions of the Solicitation may remove your company from consideration for award.

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Both Technical and Price are equally important evaluation factors.

(ii) Additional Submission Requirements

Additional Submission Requirements will be reviewed for acceptability but will not be evaluated for award decision(s). The successful awardee(s) will be required to maintain an acceptable Food Defense Plan, Integrated Pest Management Plan, and a Small Business Subcontracting Plan (applicable to large businesses only). The contracting officer must approve these plans prior to award.

Paragraph (b), Options, is deleted in its entirety.

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

52.212-3 [Reserved]

Addendum

The following additional provisions are set forth in full text:

52.216-1 TYPE OF CONTRACT (DEVIATION 2026-O0038) (FEB 2026)

The Government contemplates award of a Simplified Indefinite Delivery Contract (SIDC), firm-fixed price contract resulting from this solicitation.

5452.233-9001 DISPUTES - AGREEMENT TO USE ALTERNATIVE DISPUTE RESOLUTION (JUN 2020)

(a) The parties agree to negotiate with each other to try to resolve any disputes that may arise. If unassisted negotiations are unsuccessful, the parties will use alternative dispute resolution (ADR) techniques to try to resolve the dispute. Litigation will only be considered as a last resort when ADR is unsuccessful or has been documented by the party rejecting ADR to be inappropriate for resolving the dispute.

(b) Before either party determines ADR inappropriate, that party must discuss the use of ADR with the other party. The documentation rejecting ADR must be signed by an official authorized to bind the contractor (see FAR 52.233-1), or, for the Agency, by the contracting officer, and approved at a level above the contracting officer after consultation with the ADR Specialist and legal counsel. Contractor personnel are also encouraged to include the ADR Specialist in their discussions with the contracting officer before determining ADR to be inappropriate.

(c) If you wish to opt out of this clause, check here . Alternate wording may be negotiated with the contracting officer.

(End of Provision)

**52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
(FEB 1998)**

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This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

- FAR: <http://www.achvisition.gov/φαρ/ινδεξ.ητμλ;>
- DFARS: <http://www.achθ.οσδ.μλ/δπαπ/δαρσ/δφαρσπγ/χυρρεντ/ινδεξ.ητμλ>
- DLAD: <http://www.δλα.μλ/ΗΘ/Αχθισιτιον/Οφφερσ/ΔΛΑΔ.ασπξ>
- RFO http://www.achθ.οσδ.μλ/δπαπ/δαρσ/δφαρσ_φαρ_οπερηαυλ_χλασσ_δεωιατιονσ.ητμλ

The following additional provisions are incorporated by reference:

Provision Number

Title/Date

252.204-7008	Compliance with Safeguarding Covered Defense Information Controls (OCT 2016)
52.209-7	Information Regarding Responsibility Matters (OCT 2018)
52.227-1	Authorization and Consent (JUN 2020)
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement (JUN 2020)
52.247-34	F.O.B. Destination (Nov 1991)
52.240-90	Security Prohibitions and Exclusions Representations and Certifications (DEVIATION 2026-O0038) (FEB 2026)

PROCUREMENT NOTES:

L06 Agency Protests (DEC 2016)

Interested parties may file an agency level protest with the contracting officer or may request an independent review by the chief of the contracting office (CCO). Independent review by the CCO is an alternative to consideration by the contracting officer and is not available as an appellate review of a contracting officer decision on a protest previously filed with the contracting officer. Absent a clear indication of the intent to file an agency level protest with the CCO for independent review, protests will be presumed to be protests to the contracting officer.

C03 Contractor Retention of Supply Chain Traceability Documentation (JUN 2020)

(1) By submitting a quotation or offer, the contractor, if it is not the manufacturer of the item, is confirming it currently has, or will obtain before delivery, and shall retain documented evidence (supply chain traceability

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documentation), as described in paragraph (2) of this procurement note, demonstrating the item is from the approved manufacturer and conforms to the technical requirements.

(2) At a minimum, the supply chain traceability documentation for the item shall include: basic item description, part number and/or national stock number, manufacturing source, manufacturing source's Commercial and Government Entity (CAGE) code, and clear identification of the name and location of all supply chain intermediaries between the manufacturer to the contractor to item(s) acceptance by the Government. The documentation should also include, if available, the manufacturer's batch identification for the item(s), such as date codes, lot codes, or serial numbers. In addition, the contractor will obtain and supply any quality requirements necessary to prove the material meets the technical description. Evidence of quality consist of test results, material certifications, and manufacturing process sheets, identified by the technical data. (3) Contractors can find examples of acceptable supply chain traceability documentation at the Counterfeit Detection and Avoidance Program (CDAP) website ([http://www.dla.mil/LandandMaritime/Business/Selling/Counterfeit-Detection-Avoidance- Program/](http://www.dla.mil/LandandMaritime/Business/Selling/Counterfeit-Detection-Avoidance-Program/)). (4) The contractor shall immediately make documentation available to the contracting officer upon request. The contracting officer determines the acceptability and sufficiency of documentation. The contractor shall retain supply chain traceability documentation for six years after final payment under this contract for audit and other valid government purposes. If the contractor fails to retain or provide the documentation, or the contracting officer finds the documentation to be unacceptable, the contracting officer may take corrective action, including, but not limited to, cancellation of undelivered orders or rejection of delivered supplies.

(End of Text)

E05 Product Verification Testing (MAY 2020)

(1) Product verification testing (PVT) under this procurement note will only apply when the contracting officer specifically invokes it in writing. The contracting officer may invoke PVT at or after contract award. If the contracting officer invokes PVT at contract award, the contract will explicitly state this testing requirement. If the contracting officer invokes PVT after contract award, the contracting officer shall notify the contractor and the cognizant DCMA ACO. The Government will perform PVT testing at a Government-designated testing laboratory.

(2) The contractor shall not ship or deliver any material until it receives notification of the acceptable PVT results, unless the contracting officer directs it to do so in writing. The Government will provide the PVT results to the contractor within 20 business days after receipt at the Government testing facility, unless the Government specifies otherwise in writing. (3) The contractor shall provide and maintain an inspection system acceptable to the Government in accordance with FAR Clause 52.246-2 or 52.246-3; and maintain and make available all records evidencing those details if requested by the Government. When the Government finds evidence of risk associated with the contractor's sampling process, the Government may witness and evaluate the contractors sampling process.

The contractor shall randomly select samples from the production lot(s), unless the contracting officer specifies otherwise in writing. The contractor shall ship the selected PVT samples with a copy of the system of record receiving report (i.e., WAWF, DD Form 250, or commercial shipping document) and the contractor's signed DD Form 1222. The contractor shall prepare the shipping container(s) by marking the external packages in bold letters, "Product Verification Test Samples - Do Not Post to Stock," Contract Number [contractor insert] and Lot/Item Number [contractor insert]" adjacent to the MIL-STD-129 (latest revision) identification markings. The contractor shall use a hard copy of the system of record receiving report as a packing list, in accordance with DFARS Appendix F. The contractor shall mark the exterior of the shipping container in accordance with MIL-STD- 129 (latest revision), paragraph 5.11. The contractor shall send samples by traceable means (e.g., certified or registered mail, United Parcel Service, Federal Express). The contractor shall include the following in the interior package:

- (a) Hard copies of the contract;
- (b) Material certifications/process operation sheets; and
- (c) Drawings used to manufacture the units and return shipping information.

(4) The Government will return samples that pass testing and are not destroyed during evaluation to the contractor at the Government's expense for the contractor to include as part of the total contract quantity to be delivered under the

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contract. The contractor and Government may agree to dispose of samples not destroyed when the cost of the item does not justify the shipping expense. If the Government does not return approved samples that pass testing to the contractor, the Government will consider those samples as part of the contract quantity for payment and delivery. (5) If samples fail testing, the Government may reject the entire contract lot from which the contractor took the samples. The Government may, at its discretion, retain samples that fail testing without obligation to the contractor.
(end of text)

Contractor and Government Samples at Origin (SEP 2016)

When required, the Contractor will select samples of end items or components or both for Contractor examination or testing as required by the item specification or other contract provisions. In addition, the government may select samples of end items or components or both at origin for the purpose of conducting required inspection. The Government may use, consume, destroy or retain said samples at its option. Notwithstanding any other provision of the contract, the Contractor shall bear the cost of Contractor and Government samples selected at origin, whether the supplies are accepted or rejected.

Furthermore, unless otherwise specified, any sample unit which is altered as a result of the performance of any required examination or test so as to no longer meet the required characteristic of the component or end item, shall not be included as part of the supplies delivered under the contract. Examples of such alteration include, but are not limited to, cutting an item to remove a slice or observe internal surface characteristics, procedures requiring re-canning/re-cooking of the product, thawing and refreezing.

(End of Text)

GENERAL INSPECTION REQUIREMENTS - DLA TROOP SUPPORT - SUBSISTENCE

(a) Inspection.

(1) The Contractor shall employ the services of the United States Department of Agriculture (USDA), Grain Inspection, Packers and Stockyard Administration (GIPSA) or Agricultural Marketing Service (AMS) or U.S. Department of Commerce (USDC), National Marine Fisheries Service (NMFS) to accomplish origin inspection (examination and testing) and sampling as required herein and in the applicable commodity specifications. The Contractor shall bear all expenses incident thereto, including costs of samples and all associated costs for preparation and mailing. Costs shall be assessed in accordance with the Government laboratory testing charges for individual test characteristics and number of tests required by the specification or contract. A list of fees may be obtained from the appropriate inspection activity.

The Contractor shall furnish the Government grader/inspector a copy of the complete contract and supporting contractual documents (i.e., individual solicitation, contract modifications, waivers, and referenced specifications).

Offerors may contact the appropriate Government office to discuss inspection procedures prior to submitting offers; however, nothing provided thereby shall be construed to alter the applicable specification in any manner or to reduce the responsibility of Contractor to comply with such specifications.

(2) The Contractor shall take action to correct or replace nonconforming supplies.

(3) The Government will perform an inspection at destination for identity, condition and quantity. If there is evidence that the supplies do not conform with contract requirements, the inspector shall report the findings of his inspection to the appropriate DLA Troop Support office (operational rations business unit, food services business unit, produce business unit, product services office, etc.). The applicable DLA Troop Support office shall report the findings to the Contracting Officer or the ordering officer, who shall in turn notify the Contractor.

(4) Supplies will be rejected when any evidence of insect activity (live or dead in any stage of development) or rodent activity/contamination is found in or on product, packaging, packing or unitization.

(5) Nonconforming supplies rejected at origin will not normally be accepted by the Government. However, the

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Contractor may elect to petition the Contracting Officer in writing to grant a waiver of the contract requirements for which supplies have been found nonconforming, and to accept the supplies "as is" with appropriate price consideration.

(6) The Contractor shall furnish all inspection gauges, instruments, scales, tools or other material required by the designated Government inspection activity to complete the necessary inspection. The Government inspector will insure that the Contractor has had such gauges, instruments, scales, tools, or other material required to complete inspection properly calibrated and, if necessary, certified. When required by the contract/solicitation the Government inspector will collect insect specimens from plant production and storage areas and submit the specimens to the nearest military entomological laboratory for identification. When the collection of insects is required, the Contractor shall be responsible for supplying and installing specified insect monitoring devices required to accomplish this task.

(b) Standby test samples. The Government reserves the right to withdraw and hold standby samples of components or finished products or both (the quantity of which shall be not more than twice that required by the specification) for inspection purposes. Samples not used will be returned to the Contractor.

(c) USDA and USDC certificates.

(1) Inspection by USDA, AMS, Fruit and Vegetable Division, Poultry Division or Dairy Division: When DD Form 250, Material Inspection Receiving Report (MIRR), is not used, the Contractor shall obtain official USDA inspection certificate, which shall:

(i) Contain the following statement in the grade section of the certificate:

(A) Supplies listed hereon conform to all quality requirements of the contract.

(B) Container condition meets all requirements of the contract.

(C) Visual examination indicates conformance to packaging, packing, unitization, labeling and marking requirements of the contract.

(ii) Indicate that supplies shipped are those inspected. This may be satisfied by means of one of the following:

(A) Each primary container must be embossed, stamped or stenciled with a code mark prior to inspection, which corresponds with the code marks listed on the USDA grade certificate.

(B) The USDA grade certificate bears a statement that all of the shipping containers comprising the inspection lot have been stamped with the official USDA stamp impression.

(C) The USDA certificate of loading, if issued, bears a cross-reference to the applicable USDA inspection document.

(iii) Indicate that the Contractor has furnished a certificate of conformance for packaging, packing, labeling, marking and unitization materials.

(iv) Indicate the random samples of packaging, packing, labeling, marking and unitization materials, where applicable, have been selected by the inspector for forwarding to DLA Analytical Laboratory, 700 Robbins Avenue, Philadelphia, Pennsylvania 19111 in accordance with DLA Troop Support clause 52.246-9P20.

(v) Indicate the applicable contract or order number.

(2) Inspection by USDA, AMS, livestock, meat, grain and seed division: For all shipments, whether DD Form 250 (MIRR) is required or not, the Contractor shall obtain a USDA agricultural products acceptance certificate (Form LS 5-3), which shall contain the information specified in paragraph (c)(1). The Contractor shall also include the applicable lot number(s).

(3) Inspection by USDA, GIPSA, Field Management Division: When DD Form 250 (MIRR) is not required, the Contractor shall obtain an official USDA inspection or examination certificate, as appropriate. In addition to the entries required by the GIPSA, the certificate shall contain the following certification: "Supplies listed hereon conform to all quality and condition requirements of the contract".

(d) Distribution of Certificates. Copying machine duplicates of USDC certificates and USDA certificates other than USDA Form LS 5-3 are not acceptable. Copying machine duplicates of USDA Form LS 5-3 are acceptable only as

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provided in paragraph (2) and (3) below. Copying machine duplicates of the original signed DD Form 250 are acceptable. In addition to the prohibited use of copying machine duplicates, USDC certificates must also be embossed with the official seal of the USDC. The Contractor shall distribute certificates as follows:

(1) When DD Form 250 (MIRR) signed by the inspector is provided, a copy of the USDA/USDC inspection certificate need not be furnished to the designated paying office. (Exception: When the contract or specification provides for acceptance of product with a price adjustment to the Contractor" invoice, e.g., excess fat in ground beef, the original signed USDA/USDC inspection certificate must be attached to the top of the commercial invoice which is submitted to the designated paying office.)

(2) When DD Form 250 (MIRR) is not required, the original signed USDC inspection certificate or USDA inspection certificate other than USDA Form LS 5-3 must be attached to the top of the commercial invoice, which is submitted to the designated paying office. When the services of the USDA, AMS, Livestock, Meat, Grain and Seed Division are employed, the original signed USDA Form LS 5-3 or a copying machine duplicate of the original form LS 5-3 with an original signature must be attached to the top of the commercial invoice which is submitted to the designated paying office.

(3) As appropriate for any shipment, one blue or green signed copy of the original USDA Fruit and Vegetable Division certificate; one green or yellow carbon copy of the original signed USDA, AMS Dairy Division or Poultry Division certificate; one copy of the original signed USDA, GIPSA or USDC certificate; one copy of the original signed USDA Form LS 5-3 or a copying machine duplicate of the original USDA Form LS 5-3 with an original signature shall accompany each shipment to each destination and be marked Attention: Subsistence Inspector.

(4) In the event the Contractor does not include appropriate certificate(s) with each shipment to each destination as required, the Government reserves the right to arrange for government grading/inspection and certification at destination at the Contractor's expense.

(e) Lot identification. The contractor shall code or distinctively mark by embossing, stamping, printing or stenciling each shipping container for every lot of supplies offered for acceptance so as to identify the lot from any other lot produced by the Contractor. Under both in-process (on line) and stationary lot inspections, the maximum lot size, unless otherwise specified in the contract, shall be defined by the assigned inspection agency.

(f) Particular inspection requirements.

(1) Primary containers: Examination of primary containers for external condition and labeling shall be in accordance with the U.S. standards for condition of food containers, except that when requirements are contained in the specification, examination shall be performed in accordance with that specification. When additional requirements are specified in the specification, examination for these requirements shall be in accordance with the specification.

(2) Unit loads: Examination of unit loads shall be in accordance with MIL-L-35078.

(3) All other: Examination shall be in accordance with the specification.

(End of Text)

REINSPECTION OF NONCONFORMING SUPPLIES - DLA TROOP SUPPORT - SUBSISTENCE

(a) When origin inspection is performed by the U.S. Department of Agriculture (USDA) or U.S. Department of Commerce (USDC) and supplies are found to be nonconforming at origin, the Contractor may request USDA/USDC reinspection/formal review in accordance with the regulations of the respective agency. In such instances, the next larger available sample size will be used. The decision of the USDA/USDC representative as to conformance or nonconformance shall be final. It will be within the discretion of USDA/USDC whether to assess reinspection costs against the Contractor.

(b) When origin inspection is performed by the USDA or USDC and supplies are found to be nonconforming at destination, the Contractor may petition the Contracting Officer to obtain permission for a single reinspection, provided such petition provides valid technical reasons to believe the destination inspection findings were erroneous. The reinspection shall be performed in accordance with the original destination inspection criteria unless otherwise

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specified by the Contracting Officer.

(1) Reinspection of nonconforming supplies for grading factors, suspicion of fraud or substitution shall be conducted by the applicable origin inspection agency (USDA for meats and poultry, or USDC for water foods). All costs associated with USDA/USDC reinspection shall be borne by the Contractor; unless the reinspection results establish compliance with contractual requirements, in which case costs shall be borne by the Government.

(2) Reinspection for all other criteria shall be accomplished by the Military Medical/Veterinary Services, as coordinated by the Contracting Officer with the applicable Military Medical/Veterinary Service Headquarters. The Military Medical/Veterinary Service Headquarters will designate the activity assigned to perform the reinspection and advise the Contracting Officer and the designated activity of the reinspection schedule. Reinspection shall be performed by personnel other than those involved in the original destination inspection. Reinspection costs shall be borne by the Contractor when reinspection results substantiate the nonconformance. The Government shall bear the costs of reinspection if the products are determined to be in compliance with contractual requirements.

(c) When inspection by the USDA or USDC is not a contract requirement and supplies are found nonconforming at destination, the Contractor may petition the Contracting Officer one time only to obtain permission for a single reinspection, provided such petition provides valid technical reasons to believe the original inspection findings were erroneous. If the Contracting Officer authorizes a reinspection, the reinspection results shall be final if they differ from the original inspection to such a statistically significant degree that error in the original results is probable. Otherwise, the original inspection results shall prevail. The reinspection/formal review shall be performed in accordance with the original inspection criteria, unless otherwise specified. All costs associated with the reinspection shall be borne by the Contractor; unless the reinspection results establish compliance with the contract requirements, in which case costs shall be assumed by the Government. Reinspection shall not be authorized when original inspection findings show that the supplies are unwholesome or contain a deleterious substance.

(d) The Contractor may elect to petition the Contracting Officer to grant a waiver of those contract requirements for which supplies have been found nonconforming and accept the supplies "as is" with appropriate price consideration. However, if the Contractor intends to exercise any option under (a), (b) or (c) above, the Contractor must do so prior to requesting a waiver. The denial of a waiver by the Contracting Officer will result in final rejection of the nonconforming supplies without recourse to reinspection.

(End of Text)

TQ STO RQ011 REMOVAL OF GOVERNMENT IDENTIFICATION FROM NON-ACCEPTED SUPPLIES

The Contractor shall remove or obliterate from a rejected end item and its packing and packaging, any marking, symbol, or other representation that the end item or any part of it has been produced or manufactured for the United States Government. Removal or obliteration shall be accomplished prior to any donation, sale, or disposal in commercial channels.

(End of TQ Requirement)

Federal Food, Drug and Cosmetic Act-Wholesale Meat Act (SEP 2016)

(a) The Contractor warrants that the supplies delivered under this contract comply with the Federal Food, Drug and Cosmetic Act and the Wholesome Meat Act and regulations promulgated there under. This warranty will apply regardless of whether or not the supplies have been:

- (1) Shipped in interstate commerce,
- (2) Seized under either Act or inspected by the Food and Drug Administration or Department of Agriculture.
- (3) Inspected, accepted, paid for or consumed, or any or all of these, provided however, that the supplies are not required to comply with requirements of said Acts and regulations promulgated there under when a specific paragraph of the applicable specification directs otherwise and the supplies are being contracted for

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military rations, not for resale.

(b) The Government shall have six months from the date of delivery of the supplies to the government within which to discover a breach of this warranty. Notwithstanding the time at which such breach is discovered, the Government reserves the right to give notice of breach of this warranty at any time within this six-month period or within 30 days after expiration of such period, and any such notice shall preserve the rights and remedies provided herein.

(c) Within a reasonable time after notice to the Contractor of breach of this warranty, the Government may, at its election:

(1) Retain all or part of the supplies and recover from the Contractor, or deduct from the contract price, a sum the Government determines to be equitable under the circumstances;

(2) Return or offer to return all or part of the supplies to the Contractor in place and recover the contract price and transportation, handling, inspection and storage costs expended therefore; provided, that if the supplies are seized under either Act or regulations promulgated there under, such seizure, at Government option, shall be deemed a return of supplies within the meaning of this clause and thereby allow the government to pursue the remedy provided herein. Failure to agree to any deduction or recovery provided herein shall be a dispute within the meaning of the clause of this contract entitled "Disputes".

(d) The rights and remedies provided by this clause shall not be exclusive and are in addition to other rights and remedies provided by law or under this contract, nor shall pursuit of a remedy herein or by law either jointly, severally or alternatively, whether simultaneously or at different times, constitute an election of remedies.

(End of Text)

The Contractor shall comply with any clause that is checked on the following list which, if checked, is included in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items or components.

☒ FAR 52.203-3, Gratuities (APR 1984)

☒ FAR 52.204-7 System for Award Management - Registration (DEVIATION 2026-O0038) (FEB 2026)

☒ FAR 52.229-11 Tax on Certain Foreign Procurements - Notice and Representation (DEVIATION 2026-O0038) (FEB 2026)

☒ FAR 52.229-12 Tax on Certain Foreign Procurements (DEVIATION 2026-O0038) (FEB 2026)

☒ DFARS 252.203-7000, Requirements Relating to Compensation of Former DoD Officials (SEP 2011)

☒ DFARS 252.203-7003, Agency Office of the Inspector General (AUG 2019)

☒ DFARS [252.203-7005](#), Representation Relating to Compensation of Former DoD Officials (SEP 2022)

☒ DFARS [252.204-7012](#), Safeguarding Covered Defense Information and Cyber Incident Reporting
DEVIATION 2026-O0025 (FEB 2026)

☐ [Reserved]

☐ DFARS [252.204-7014](#), Limitations on the Use or Disclosure of Information by Litigation Support Contractors
(MAY 2016)

☐ DFARS [252.204-7015](#), Notice of Authorized Disclosure of Information for Litigation Support (JAN 2023)

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- ☒ DFARS 252.204-7019, [Reserved]
- ☒ DFARS 252.204-7020, NIST SP 800-171 DOD Assessment Requirements DEVIATION 2026-O0025 (FEB 2026)
- ☒ DFARS 252.205-7000, Provision of Information to Cooperative Agreement Holders (JUN 2023)
- ☒ DFARS [252.211-7003](#), Item Unique Identification and Valuation (MAR 2023)
- ☐ DFARS [252.215-7003](#), Requirements for Submission of Data Other Than Certified Cost or Pricing Data -- Canadian Commercial Corporation (JUL 2012)
- ☐ DFARS [252.215-7990](#), Requirement for Submission of Data other Than Certified Cost or Pricing Data -- Modifications --Canadian Commercial Corporation (DEVIATION 2026-O0048) (MAR 2026)
- ☐ DFARS [252.215-7007](#), Notice of Intent to Resolicit (JUN 2012)
- ☒ DFARS 252.215-7992, Only One Offer (DEVIATION 2026-O0048) (MAR 2026)
- ☒ DFARS 252.215-7013, Supplies and Services Provided by Nontraditional Defense Contractors (JAN 2023)
- ☐ DFARS 252.215-7996, Notification to Offerors - Postaward Debriefings (DEVIATION 2026-O0048) (MAR 2026)
- ☐ DFARS 252.216-7010, Postaward Debriefings for Task Orders and Delivery Orders (DEC 2022)
- ☒ DFARS 252.219-7996, Small Business Subcontracting Plan (DoD Contracts) - (DEVIATION 2026-O0037) (FEB 2026)
- a. ☐ Alternate I (DEC 2019) of
- ☐ DFARS 252.219-7997, Small Business Subcontracting Plan (Test Program) (DEVIATION 2026-O0037) (FEB 2026)
- ☒ DFARS [252.223-7008](#), Prohibition of Hexavalent Chromium (JAN 2023)
- ☒ DFARS [252.225-7000](#), Buy American --Balance of Payments Program Certificate (FEB 2024)
- ☒ DFARS 252.225-7001, Buy American and Balance of Payments Program - Basic (FEB 2024)
- ☐ DFARS 252.225-7008, Restriction on Acquisition of Specialty Metals (MAR 2013)
- ☐ DFARS 252.225-7009, Restriction on Acquisition of Certain Articles Containing Specialty Metals (JAN 2023)
- ☐ DFARS [252.225-7010](#), Commercial Derivative Military Article --Specialty Metals Compliance Certificate (JUL 2009)
- ☒ DFARS 252.225-7012, Preference for Certain Domestic Commodities (APR 2022)
- ☐ DFARS 252.225-7015, Restriction on Acquisition of Hand or Measuring Tools (JUN 2005)
- ☐ DFARS 252.225-7016, Restriction on Acquisition of Ball and Roller Bearings (JAN 2023)

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- _____ DFARS [252.225-7017](#), Photovoltaic Devices (MAR 2024)
- _____ DFARS [252.225-7018](#), Photovoltaic Devices --Certificate (MAR 2024)
- _____ DFARS [252.225-7020](#), Trade Agreements Certificate (NOV 2014)
- _____ DFARS 252.225-7021, Trade Agreements (FEB 2024)
- a. _____ Alternate III (FEB 2024) of 252.225-7021
- _____ DFARS 252.225-7027, Restriction on Contingent Fees for Foreign Military Sales (APR 2003)
- _____ DFARS 252.225-7028, Exclusionary Policies and Practices of Foreign Governments (APR 2003)
- _____ DFARS [252.225-7031](#), Secondary Arab Boycott of Israel (JUN 2005)
- _____ DFARS [252.225-7035](#), Buy American --Free Trade Agreements --Balance of Payments Program Certificate (FEB 2024)
- a. _____ Alternate I (FEB 2024) of 252.225-7035
- d. _____ Alternate IV (FEB 2024) of 252.225-7035
- _____ DFARS 252.225-7036, Buy American --Free Trade Agreements--Balance of Payment Program - Basic (FEB 2024)
- a. _____ Alternate I (FEB 2024) of 252.225-7036
- d. _____ Alternate IV (FEB 2024) of 252.225-7036
- f. _____ Alternate VI (FEB 2024) of 252.225-7036
- g. _____ Alternate VII (FEB 2024) of 252.225-7036
- j. _____ Alternate X (FEB 2024) of 252.225-7036
- _____ DFARS [252.225-7040](#), Contractor Personnel Supporting U.S. Armed Forces Deployed Outside the United States (OCT 2015)
- _____ DFARS 252.225-7963, Antiterrorism/Force Protection Policy for Defense Contractors Outside the United States (DEVIATION 2026-O0041) (FEB 2026)
- _____ DFARS 252.225-7050, Disclosure of Ownership or Control by the Government of a Country That is a State Sponsor of Terrorism (DEC 2022)
- X DFARS 252.225-7052, Restrictions on the Acquisition of Certain Magnets, Tantalum and Tungsten (MAY 2024)
- _____ DFARS 252.225-7053, Representation Regarding Prohibition of Use of Certain Energy Sourced Inside the Russian Federation (AUG 2021)
- _____ DFARS 252.225-7054, Prohibition of Use of Certain Energy Sourced Inside the Russian Federation (JAN

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☒ DFARS 252.225-7055, Representation Regarding Business Operations with the Maduro Regime (MAY 2022

☒ DFARS 252.225-7056. Prohibition Regarding Business Operations with the Maduro Regime (JAN 2023)

☒ DFARS 252.225-7057, Preaward Disclosure of Employment of Individuals Who Work in the People's republic of China (AUG 2022)

☒ DFARS 252.225-7058, Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China (JAN 2023)

☒ DFARS 252.225-7059, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region - Representation (JUN 2023)

☒ DFARS 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region (JUN 2023)

☒ DFARS 252.225-7061, Restriction on Acquisition of Personal Protective Equipment and Certain Other Items From Non-Allied Foreign Nations (JAN 2023)

☒ DFARS 252.225-7966, Prohibition Regarding Russian Fossil Fuel Business Operations - Representation (Deviation 2024-O0006, Revision 1)(MAR 2024)

☒ DFARS 252.225-7967, Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)(MAR 2024)

☐ DFARS 252.225-7975, Additional Access to Contractor and Subcontractor Records (Deviation 2024-O0003) (DEC 2023)

☐ DFARS 252.225-7993, Prohibition on Providing Funds to the Enemy (Deviation 2024-O0003)(DEC 2023)

☒ DFARS 252.226-7001, Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns (JAN 2023)

☐ DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation --Other Than Commercial Products and Commercial Services (DEVIATION 2026-O0036) (FEB 2026)

☒ DFARS 252.227-7990, Technical Data -- Commercial Items (DEVIATION 2026-O0036) (FEB 2026)

☒ DFARS 252.227-7937, Validation of Asserted Restrictions on Technical Data (DEVIATION 2026-O0036) (FEB 2026)

☐ DFARS 252.229-7014, Full Exemption From Two-Percent Tax on Certain Foreign Procurements (OCT 2022)

☒ DFARS 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports (DEC 2018)

☐ DFARS [252.232-7009](#), Mandatory Payment by Governmentwide Commercial Purchase Card (MAY 2018)

☒ DFARS [252.232-7010](#), Levies on Contract Payments (DEC 2006)

☐ DFARS [252.232-7011](#), Payments in Support of Emergencies and Contingency Operations (MAY 2013)

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Form (CONTINUED)

_____ DFARS 252.237-7010, Prohibition on Interrogation of Detainees by Contractor Personnel (JAN 2023)

_____ DFARS 252.237-7998, Training for Contractor Personnel Interacting with Detainees (DEVIATION 2026-O0023) (FEB 2026)

_____ DFARS [252.239-7017](#), Notice of Supply Chain Risk (DEVIATION 2026-O0025) (FEB 2026)

_____ DFARS [252.239-7018](#), Supply Chain Risk (DEVIATION 2026-O0025) (FEB 2026)

 X DFARS 252.243-7002, Requests for Equitable Adjustment (DEC 2022)

 X DFARS 252.244-7999, Subcontracts for Commercial Products or Commercial Services (DEVIATION 2026-O0015) (FEB 2026)

_____ DFARS 252.245-7005, Management and Reporting of Government Property (JAN 2024)

_____ DFARS [252.246-7003](#), Notification of Potential Safety Issues (JAN 2023)

_____ DFARS 252.246-7004, Safety of Facilities, Infrastructure, and Equipment for Military Operations (OCT 2010)

_____ DFARS 252.247-7003, Pass-Through of Motor Carrier Fuel Surcharge Adjustment to the Cost Bearer (JAN 2023)

 X DFARS 252.247-7023, Transportation of Supplies by Sea (OCT 2024).

 a. _____ Alternate I (OCT 2024) of 252.247-7023.

 b. _____ Alternate II (OCT 2024) of 252.247-7023

_____ DFARS [252.247-7025](#), Reflagging or Repair Work (JUN 2005)

_____ DFARS [252.247-7026](#), Evaluation Preference for Use of Domestic Shipyards - Applicable to Acquisition of Carriage by Vessel for DoD Cargo in the Coastwise or Noncontiguous Trade (NOV 2008)

_____ DFARS 252.247-7027, Riding Gang Member Requirements (MAY 2018)

_____ DFARS [252.247-7028](#), Application for U.S Government Shipping Documentation/Instructions (JUN 2012)

_____ DFARS 252.270-7000, Pilot Program to Incentivize Contracting with Employee-Owned Businesses - Representation (NOV 2024)

_____ DFARS 252.270-7001, Pilot Program to Incentivize Contracting with Employee-Owned Businesses - Subcontracting Certification (NOV 2024)

_____ DFARS 252.270-7000, Pilot Program to Incentivize Contracting with Employee-Owned Businesses (NOV 2024)

In addition to the clauses listed above, the Contractor shall include the terms of the following clauses, if applicable, in subcontracts for commercial items or commercial components, awarded at any tier under this contract:

DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation --

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Part 12 Clauses CLAUSES ADDED TO PART 12 BY ADDENDUM 252.203-7000 REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2011) DFARS 252.203-7002 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022) DFARS 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014) FAR 252.204-7003 CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT (APR 1992) DFARS 252.204-7009 LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT INFORMATION (JAN 2023) DFARS 52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PURCHASES (FEB 2021) FAR 252.225-7013 DUTY-FREE ENTRY (NOV 2023) DFARS 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024) FAR 52.232-1 PAYMENTS (APR 1984) FAR 52.232-8 DISCOUNTS FOR PROMPT PAYMENT (FEB 2002) FAR 52.232-11 EXTRAS (APR 1984) FAR 52.232-25 PROMPT PAYMENT (JAN 2017) FAR 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023) FAR 252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018) DFARS 252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (PRE-FILLED) (JAN 2023) DFARS		
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Part 12 Clauses (CONTINUED)

As prescribed in 232.7004 (b), use the following clause:

(a) *Definitions.* As used in this clause -

Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.

Document type means the type of payment request or receiving report available for creation in Wide Area Workflow (WAWF).

Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.

Payment request and receiving report are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation System (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall -

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this Web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) *WAWF methods of document submission.* Document submissions may be via Web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items -

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

Invoice (stand-alone) and Receiving Report (stand-alone) or Invoice and Receiving Report (combination)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either “Invoice 2in1” or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table *

Field Name in WAWF	Data to be entered in WAWF	Guidance
Pay Official DoDAAC	See Block 12 (SF26), 15 (DD 1155), or 18a (SF1449)	(If blank, see resulting award)
Issue By DoDAAC	See Block 5 (SF26), 6 (DD 1155), or 9 (SF1449)	(If blank, see resulting award)
Admin DoDAAC	See Block 6 (SF26), 7 (DD 1155), or 16 (SF1449)	(If blank, see resulting award)
Inspect By DoDAAC	SEE SECTION B	(If blank, see resulting award)
Ship To Code	SEE SECTION B	(If blank, see resulting award)
Ship From Code	SEE SECTION B	(If blank, see resulting award)
Mark For Code	SEE SECTION B	(If blank, see resulting award)
Service Approver (DoDAAC)		(If blank, see resulting award)
Service Acceptor (DoDAAC)		(If blank, see resulting award)

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Part 12 Clauses (CONTINUED)

Field Name in WAWF	Data to be entered in WAWF	Guidance
Accept at Other DoDAAC		(If blank, see resulting award)
LPO DoDAAC		(If blank, see resulting award)
DCAA Auditor DoDAAC		(If blank, see resulting award)
Other DoDAAC(s)		(If blank, see resulting award)

(* Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")
(** Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)
(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.
(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.
(g) *WAWF point of contact.* (1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

See administer listed on page 1

(Contracting Officer: Insert applicable information or "Not applicable.")
(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.
(End of Clause)

252.232-7010 LEVIES ON CONTRACT PAYMENTS (DEC 2006) DFARS

52.233-1 DISPUTES (MAY 2014) FAR

52.242-17 GOVERNMENT DELAY OF WORK (APR 1984) FAR

52.243-1 CHANGES - FIXED PRICE (AUG 1987) FAR

252.243-7001 PRICING OF CONTRACT MODIFICATIONS (DEC 1991) DFARS

252.244-7000 SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023) DFARS

52.246-2 INSPECTION OF SUPPLIES FIXED PRICE (AUG 1996) FAR

52.246-23 LIMITATION OF LIABILITY (FEB 1997) FAR

52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE) (APR 1984) FAR

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) FAR

As prescribed in 52.107(b), insert the following clause:

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/?q=browsefar>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

DLAD: <http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx>

(End of clause)

52.253-1 COMPUTER GENERATED FORMS (JAN 1991) FAR

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Part 12 Clauses (CONTINUED)

- 252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023) DFARS
- 252.225-7048 EXPORT CONTROLLED ITEMS (JUN 2013) DFARS
- 52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES (DEC 2023) FAR
- 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) FAR
- 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023) FAR
- 52.204-30 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS -- PROHIBITION (DEC 2023) FAR
- 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013) FAR

Part 12 Provisions

- PROVISIONS ADDED TO PART 12 BY ADDENDUM
- 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017) FAR
- 252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022) DFARS
- 252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016) DFARS
- 52.207-4 ECONOMIC PURCHASE QUANTITY---SUPPLIES (AUG 1987) FAR
- As prescribed in 7.203 , insert the following provision:
- (a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.
- (b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

OFFEROR RECOMMENDATIONS

ITEM	QUANTITY	PRICE QUOTATION	TOTAL

- (c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Government's requirements indicate that different quantities should be acquired.
- (End of provision)

H18 DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM (DPAS) RATED AWARDS (FEB 2025)

52.225-18 PLACE OF MANUFACTURE (AUG 2018) FAR

- As prescribed in 25.1101(f), insert the following solicitation provision:
- (a) Definitions. As used in this provision --
- “Manufactured end product” means any end product in Federal Supply Classes (FSC) 1000-9999, except --
- (1) FSC 5510, Lumber and Related Basic Wood Materials;
- (2) Federal Supply Group (FSG) 87, Agricultural Supplies;
- (3) FSG 88, Live Animals;
- (4) FSG 89, Food and Related Consumables;
- (5) FSC 9410, Crude Grades of Plant Materials;
- (6) FSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) FSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) FSC 9610, Ores;
- (9) FSC 9620, Minerals, Natural and Synthetic; and

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Part 12 Provisions (CONTINUED)

(10) FSC 9630, Additive Metal Materials.

“Place of manufacture” means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly --

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(End of provision)

L06 AGENCY PROTESTS (DEC 2016)

252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (DEC 2019) DFARS

As prescribed in 204.2105 (a), use the following provision:

(a) *Definitions.* As used in this provision, “covered defense telecommunications equipment or services” has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered defense telecommunications equipment or services”.

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7024 NOTICE ON THE USE OF THE SUPPLIER PERFORMANCE RISK SYSTEM (MAR 2023) DFARS

252.239-7098 PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES---REPRESENTATION (DEVIATION 2021-O0003) (APR 2021)

Include the following provision in all solicitations, including solicitations for the acquisition of commercial items under FAR part 12, that will use funds made available by the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions as contained in section 8116, division C, title VIII, of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260).

(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) *Representation.* By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) FAR

As prescribed in 4.2105(a), insert the following provision:

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services --Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services . The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to --

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to --

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

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Part 12 Provisions (CONTINUED)

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) *Representations*. The Offeror represents that --

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that --

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) *Disclosures*. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment --

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services --

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment --

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services --

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (OCT 2020) FAR

As prescribed in [4.2105](#)(c), insert the following provision:

(a) *Definitions*. As used in this provision, “covered telecommunications equipment or services” has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(c) *Representation*. The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS -- REPRESENTATION AND DISCLOSURES (DEC 2023) FAR